



JANUARY 7th 2026

CITY OF ITHACA COMMON COUNCIL MEETING

AGENDA- **REVISED**

Date: Wednesday January 7, 2026
Time: 6:00 PM
Location: City Hall Council Chambers
Watch Online: <https://www.youtube.com/@CityofIthacaPublicMeetings>

1. **Call to Order**
 - 1.1. Emergency Evacuation Notice
 - 1.2. Appointment of Acting and Alternate Acting Mayor
 - 1.3. Agenda Review
 - 1.4. Reports of Municipal Officials
2. **Review and Approval of Minutes**
 - 2.1. [Approval of Previous Meeting Minutes](#)
3. **Public Hearing**
 - 3.1. [Reallocation of HUD Entitlement Funds](#)
 - 3.2. [Ithaca Farmers Market Parking Agreement with Cayuga Medical](#)
4. **Petitions and Hearings of Persons Before Council**
 - 4.1. Statement From The Public
 - 4.2. Privilege Of The Floor- Comments From Council and The Mayor
5. **Consent Agenda - No Items for Consent**
6. **Order of Business**
 - 6.1. [Reallocation of HUD Entitlement Funds-CDBG](#)
 - 6.2. [Ithaca Farmers Market Parking Agreement with Cayuga Medical](#)
 - 6.3. [Contract Agreement- Town of Ithaca Fire Protection District](#)
 - 6.4. [Ordinance- 2026 Parking Fee Changes](#)
 - 6.5. [Bond Resolution-Stewart Avenue Bridge - \\$5,200,300](#)
 - 6.6. [Bond Resolution- Cass Park Bathroom-Pavilion Improvements- \\$938,000](#)
 - 6.7. [Bond Resolution- North Cayuga Street Bridge- \\$200,000](#)
 - 6.8. [Bond Resolution- Red & White Cafe- \\$250,000](#)
 - 6.9. [Bond Resolution- Raw Water Main \(Reservoir to WTP\) - \\$1,500,000](#)
 - 6.10. [Bond Resolution- 510 First Street Renovation -\(Sewer\) - \\$600,000](#)
 - 6.11. [Bond Resolution- 510 First Street Renovation - \(Water\) - \\$400,00](#)
 - 6.12. [Bond Resolution- Wastewater Treatment Plant Improvements - \\$500,000](#)
 - 6.13. [Bond Resolution- Improvements to 60 Foot Dam \(City Share\) - \\$1,500,000](#)
 - 6.14. [ENERGY SUSTAINABILITY IMPROVEMENTS- \\$400,000](#)
7. **Member Filed**
8. **Mayor Appointments**
 - 8.1. [Appointment to the Cable Access Oversight Committee](#)
 - 8.2. [Appointment to the Board of Zoning Appeals \(BZA\)](#)
 - 8.3. [Appointment to the Ithaca Landmark Preservation Commission](#)
 - 8.4. [Appointment to the Community Police Board](#)
9. **Reports from Staff**
 - 9.1. [City Clerk's Report](#)

- 9.2. City Controller's Report
- 9.3. City Attorney's Report
- 9.4. City Manager's Report

10. Executive Session (If Needed)

11. Meeting Wrap Up

- Announcements
- Meeting Adjourned.

Public Comment Forum

The public can provide short statements during this portion of the meeting. 3 minutes is the maximum time allotted, but the chair reserves the right to modify the amount of time per individual at the start of the meeting. Only the first hour of the meeting is set aside for Public Comment. **Groups of 3 or more speakers are allotted more speaking time.**

For Longer Speaking Time - Multiple speakers on the same topic can speak as a group with one Designated Speaker to represent the Group. This will give you more time to share your thoughts and concerns during the Public Comment Forum.

3-4 Persons with One Designated Speaker - Allotted 5 minutes

5 or More Persons with One Designated Speaker - Allotted 7 minutes

Can't Come to the Meeting but still want to speak?

Register to Speak Virtually - [Register To Speak Virtually Here](#)

Attending the Meeting to Speak in Person? Pre-Registration Not Required

Comment Cards are provided to those who attend in person. Once you have filled out your Comment Card, please hand your card to the Clerk. Your name will be called to speak in the order the cards are received.

Please Note Comment Cards will be accepted up until the Public Comment Forum begins or a maximum of 30 speakers, whichever comes first.

Once we have reached a maximum of 30 speakers, you can submit your comment using the Written Comment Link Below.

Want to Submit a Comment and Not Speak in Person?

To Submit Written Comments - [Click Here To Submit Your Written Comment](#)

*Written comments submitted will be compiled and entered into the record.

Agenda At A Glance

1. Call to Order

Council officially starts the meeting, goes over safety rules, chooses who fills in for the Mayor if needed, and agrees on the meeting agenda.

2. Approval of Past Meeting Notes

Council votes on whether to approve minutes from meetings held in October and November, and December 2025.

3. Public Hearings

3.1 HUD Funding Changes - Council will hear public comments about moving federal housing and community money from projects that are delayed to projects ready to go, like fixing up Cass Park, helping an affordable home, and improving the Southside Community Center.

3.2 Farmers Market Parking Agreement- Council will hear public comments about allowing the Farmers Market to rent some of its parking spaces to Cayuga Medical.

4. Petitions and Hearings of Persons Before Council

Community members can speak to Council about issues that are not already on the agenda.

5. Consent Agenda

There are no routine items to approve all at once at this meeting.

6. Order of Business:

6.1–6.2 Housing Funds and Farmers Market Parking- Council will vote on:

- Moving federal housing and community funds to projects that are ready now.
- Allowing the Farmers Market to lease parking spaces to Cayuga Medical.

6.3 Fire Protection Agreement- Council will vote on a contract related to fire protection services with the Town of Ithaca.

6.4 Parking Fees for 2026- Council will vote on changes to parking fees for the coming year.

6.5–6.13 Bond Resolutions (Borrowing Money for Big Projects)

Council will vote on borrowing money to pay for major city projects, including:

- Fixing and improving bridges
- Upgrading parks and bathrooms
- Improving water and sewer systems
- Making repairs to city buildings and dams

7. Member-Filed Items - There are No Member Filed Items scheduled.

8. Mayor Appointments

Council will vote on appointments to The Cable Access Oversight Committee, The Board of Zoning Appeals, The Ithaca Landmark Preservation Commission

9. Staff Reports

City staff will give updates, including reports from the City Clerk, City Controller, City Attorney, and City Manager.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Clerk's Office
Shaniqua Lewis,

MEMORANDUM

TO: Common Council
FROM: Deputy City Clerk
DATE: January 7, 2026
RE: Approval of Previous Meeting Minutes
ITEM #: 2.1

- October 22nd Committee Of The Whole-Study Session
- October 29th Special Common Council/Budget Meeting
- November 12th Special Common Council Meeting.
- November 19th Special Common Council Meeting
- December 3rd Common Council Meeting



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Ithaca Urban Renewal Agency
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Nel Bohn
DATE: January 7, 2026
RE: Reallocation of HUD Entitlement Funds
ITEM #: 3.1

A public hearing is being held to receive public input on the Ithaca Urban Renewal Agency's proposed reallocation of HUD Community Development Block Grant (CDBG) funds. The reallocation would shift funding from canceled or delayed projects to alternative projects to ensure the timely expenditure of funds, including improvements at the Southside Community Center, support for an affordable home at 215 Cleveland Avenue, and ADA-accessible restroom and pavilion upgrades at Cass Park, totaling \$205,400.

ATTACHMENTS:

[Legal Notice- Reallocation HUD Entitlement Fund.PDF](#)

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ANNOUNCE

Announcements

Don't let the stairs limit your mobility! Discover the ideal solution for anyone who struggles on the stairs, is concerned about a fall or wants to regain access to their entire home. Call AmeriGlide today! 1-855-921-5525

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STUFF

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★ **Prefer pre-1980** ★
Call or Text Henry @ 917-273-2353

PUBLIC NOTICES

Notice LLC & PLC

KYLE ACENOWR TATTOO LLC. Filed 10/29/25. Office: Tompkins Co. SSNY desig. as agent for process & shall mail to: c/o James Acenowr, 58 Hector St, Trumansburg, NY 14886. Purpose: General. 11/14, 11/21, 11/28, 12/5, 12/12, 12/19/25

Notice of Formation of Advanced Business Incubation Concepts, LLC. Articles of Organization filed with Secretary of State of New York (SSNY) on 10/28/25. Office Location: Tompkins County. SSNY designated as agent of LLC upon whom process against it may be served. SSNY shall mail copy of process to: 207 The Parkway Ithaca, NY 14850. Purpose: To engage in any and all business for which LLCs may be formed under the New York LLC law. 11/14, 11/21, 11/28, 12/5, 12/12, 12/19/25

NOTICE OF FORMATION of a LIMITED LIABILITY COMPANY Ramji Hospitality, LLC. Articles of Organization filing date with Secretary of State (SSNY) was 03/23/2012. Office location: Tompkins County. SSNY has been designated as agent of LLC upon whom process against it may be served and SSNY shall mail copy

Notice LLC & PLC

of process to: 638 Elmira Road, Ithaca, NY 14850. Purpose is to engage in any and all business activities permitted under NYS laws. 11/14, 11/21, 11/28, 12/5, 12/12, 12/19/25

Bee Still Hive LLC, Arts. of Org. filed with the Secretary of State of New York (SSNY) on 11/14/25. Office location: Tompkins County. SSNY has been designated as agent of the LLC upon whom process against it may be served. SSNY shall mail a copy of process to: Bee Still Hive LLC, 46 Elm St, Trumansburg, NY 14886. Purpose: Any lawful purpose. 11/21, 11/28, 12/5, 12/12, 12/19, 12/26/25

DIG CONCEPTS, LLC. Arts. of Org. filed with the SSNY on 08/25/25. Office: Tompkins County. SSNY designated as agent of the LLC upon whom process against it may be served. SSNY shall mail copy of process to the LLC, PO Box 843, Trumansburg, NY 14486. Purpose: Any lawful purpose. 11/21, 11/28, 12/5, 12/12, 12/19, 12/26/25

Notice of Formation of Dennis Lagoe LLC Art. Of Org. filed with SSNY on May 13, 2025. Office Location: Tompkins County. SSNY designated as agent of the LLC upon whom process against it may be served. SSNY shall mail process to: Rocket Corporate Services Inc. 2804 Gateway Oaks Drive #100 Sacramento, CA 95833. Purpose: to engage in any and all business for which LLCs may be formed under the New York LLC law. 11/21, 11/28, 12/5, 12/12, 12/19, 12/26/25

Notice of Formation of EBY1 LLC. Art. Of Org. filed with SSNY on 10/24/2025. Office Location: Tompkins County. SSNY designated as agent of the LLC upon whom process against it may be served. SSNY shall mail process to: 145 Hillside Ave, Cresskill, NJ 07626. Purpose: any lawful purpose. 11/21, 11/28, 12/5, 12/12, 12/19, 12/26/25

Notice of formation of Cayuga Beam Systems, LLC. for any lawful purpose. Arts. of Org. filed with SSNY on 21 Nov 2025. Office: Tompkins County. SSNY designated as agent of the LLC upon whom process against it may be served. SSNY shall mail process to 757 Warren Rd #4108, Ithaca, NY 14852. 11/28, 12/5, 12/12, 12/19, 12/26/25, 1/2/26

Sol Living, LLC, Art. of Org. filed with the SSNY on 11/20/2025. Office: Tompkins County. SSNY designated as agent of the LLC upon whom process against it may be served. SSNY shall mail copy of process to the LLC, PO Box 133, Ithaca, NY 14851. Purpose: Any lawful purpose. 11/28, 12/5, 12/12, 12/19, 12/26/25, 1/2/26

Notice LLC & PLC

Brook Hollow Riding Center, LLC, Art. of Org. filed with the SSNY on 11/20/2025. Office: Tompkins County. SSNY designated as agent of the LLC upon whom process against it may be served. SSNY shall mail copy of process to the LLC, 310 N. Aurora St., 2nd Floor, Ithaca, NY 14850. Purpose: Any lawful purpose. 11/28, 12/5, 12/12, 12/19, 12/26/25, 1/2/26

NOTICE of FORMATION of a LIMITED LIABILITY COMPANY

Grounded By C&C, LLC filed Articles of Organization with NY Secretary of State (SSNY) on 10/02/2025. Office location: Tompkins County. SSNY has been designated as agent of LLC upon whom process may be served and SSNY shall mail copy of process to 77 Hudson Heights, Ithaca, NY 14850. Purpose is to engage in any and all business activities permitted under NYS laws. 12/5, 12/12, 12/19, 12/26/25, 1/2, 1/9/26

AscendX Consulting LLC. Filed 10/19/25. Cty: Tompkins. SSNY desig. for process & shall mail 16 Captains Walk, Ithaca, NY 14850. Purp: any lawful. 12/5, 12/12, 12/19, 12/26/25, 1/2, 1/9/26

NEXT FRONTIER INTERNATIONAL, LLC filed Arts. of Org. with the Sec. of State of NY (SSNY) on December 2, 2025. Office location, County of Tompkins. The Secretary of State of New York ("SSNY") has been designated as agent of the LLC upon whom process against it may be served. SSNY shall mail process to: NEXT FRONTIER INTERNATIONAL, LLC, 2767 N. Triphammer Road, Ithaca, NY 14850. Purpose: any lawful act. 12/12, 12/19, 12/26/25, 1/2, 1/9, 1/16/26

Notice of Formation of a NY Limited Liability Company. Hellohealthjoy LLC. Articles of Organization filing date with Secretary of State (SSNY) was December 4, 2025. Office location: Tompkins County. SSNY has been designated as agent of LLC upon whom process against it may be served and SSNY shall mail copy of process to 324 Blackstone Ave, Ithaca NY 14850 Purpose is to engage in any and all business activities permitted under NYS laws. 12/19, 12/26/25, 1/2, 1/9, 1/16, 1/23/26

Notice of Formation of Faciliter, LLC. Articles of organization filed with NYS Dept of State (SSNY) on 12/12/2025. Office location: Tompkins County at 318 Linn St, Ithaca, NY 14850. SSNY designated as agent of the LLC upon whom process it may be served. SSNY shall mail process to 318 Linn St, Ithaca, NY 14850. Purpose: any lawful purpose.

Public Notices

Invitation to Bid



The Town of Ithaca is now accepting bids for the following project:
MBE/WBE/SDVOB Subcontractors/Suppliers
One of the leading General Contractors in Upstate NY is soliciting bids for an upcoming construction project called Creekside Crossing Apartments in Ithaca, NY.

New York State Certified MBE, WBE, and SDVOB subcontractors are requested for all scopes of work regarding the buildout phase of this project set to start in January 2026, with completion in the Fall of 2026.

Please send information and/or questions to: TAYLOR - The Builders; 105 Despatch Drive, East Rochester, NY 14445, or email Derek@buildtaylor.com

No phone calls will be accepted!

"An Equal Opportunity Employer"
December 19 2025
LNYS0424220

Town of Ithaca
Notice of Public Hearings
The Town Board will hold public hearings at its meeting on December 30, 2025, which begins at 11:00am local time at Town Hall, 215 N. Tioga St., and will also be available for virtual participation/comments via ZOOM (ID 98910958241) to hear all comments from the public regarding:
1. A proposed contract (3-5 year options) with the City of Ithaca for Emergency Response and Fire Protection services, and
2. The proposed acquisition of approximately 137 acres on South Hill (Chase Ln, King Rd E, Schickel and Ridgecrest Rds area) to preserve open space. Project name "Sage Preserve" at a cost to the Town of approximately \$258,650, subject to permissive referendum. Information on the proposed actions are available on our website or from the Town Clerk's office.
Paulette Rosa
Town Clerk
December 19, 2025
11921790

REQUEST FOR PROPOSALS CONSTRUCTION MANAGEMENT SERVICES
The **Candor Central School District** invites construction management firms to submit proposals to perform construction management services for **Phase 2** of the district's **2023 Capital Improvement Project**. Qualification responses are due on January 30, 2026, at 2:00 pm. Please see the district website for details at <https://www.candorcs.org/page/capital-projects>. 12/19/2025 11929540

Public Notices

NOTICE OF SPECIAL TOWN BOARD MEETING OF THE TOWN OF LANSING ZONING BOARD OF APPEALS

PLEASE TAKE NOTICE that a Special Zoning Board of Appeals Meeting is being called, convened, and held on December 22, 2025, at 6:30 p.m. at the Lansing Town Hall, 29 Auburn Road, Lansing, New York 14882, and streamed live on YouTube, for the purposes of the ZBA's consideration of pending appeals regarding 228 Cayuga Dr., Tax Parcel Number 11.-1-3.211. All residents of the Town and the general public are invited to attend this special meeting.
Dated: December 15, 2025
By Order of the ZBA Chairperson, Jack Young
Kelly Geiger
ZBA Clerk, Town of Lansing
Dec 19, 2025 #11929603

Notice of Public Hearing & Comment Period City of Ithaca Amendments to City of Ithaca 2022-2025 HUD Entitlement Annual Action Plans

The City of Ithaca Common Council will hold a public hearing at 6:00 p.m., January 7, 2026, on the proposed Substantial Amendments to the 2022-2025 City of Ithaca HUD Entitlement Plans described below. The public comment period for the same continues until noon the same day. Information about participation follows. The Ithaca Urban Renewal Agency on behalf of the City of Ithaca proposes Substantial Amendments to the 2022, 2023, 2024, and 2025 City of Ithaca HUD Entitlement Annual Action Plans (AAPs). The U.S. Department of Housing & Urban Development (HUD) defines a reallocation of \$35,000 or more in Entitlement funding as an action requiring a Substantial Amendment. A project(s) in each of the four years identified above will undergo such a change. **Deadline for submission of comments is January 7, 2026 at 12 NOON.**

Background:
HUD requires that communities expend CDBG funds on a timely basis or face reduced future allocations. Projects funded in the City's 2023, 2024, and 2025 Annual Action Plans (AAPs) that have been cancelled or will not disburse their full CDBG funding have resulted in an accumulation of over \$205,000 in CDBG funds. Reallocation of this CDBG funding to compliant projects ready for implementation will facilitate expenditure and reduce risk in meeting HUD's timeliness metric.

Proposed Projects for Reallocation:
1. Reallocate \$70,400 in Community Development Block Grant Program (CDBG) funding to the City of Ithaca to carry out upgrades and modernization to Southside Community Center (SSCC) electrical and fire alarm systems. These improvements to the building's major systems are essential to other upgrades.
2. Reallocate \$50,000 in CDBG funding to Ithaca Neighborhood Housing Services (INHS) for costs related to construction and flood mitigation at its 2022 Project #1 "215 Cleveland Ave. For-Sale Home."
3. Reallocate \$85,000 in CDBG funding to the City of Ithaca for installation of ADA public restroom and pavilion in Cass Park.

ADD
Amount: \$70,400
Project: 2025 Project #9, "Southside Community Center Electrical Upgrades and Fire Alarm System"
Sponsor: City of Ithaca

Amount: \$50,000
Project: 2022 Project#1, "215 Cleveland Avenue For-Sale Home"
Sponsor: INHS

Amount: \$85,000
Project: 2025 Project #8, "Cass Park ADA Public Restroom and Pavilion"
Sponsor: City of Ithaca

SUBTRACT
Amount: \$70,400
Project: 2025 Project #9, "Southside Community Center (SSCC) Upgrades"
Sponsor: SSCC

Amount: \$67,000
Project: 2025 Project #8, "Work Preserve: Job Place-ments"
Sponsor: Historic Ithaca

Amount: \$35,000
Project: 2023 Project #2, "Homeowner Rehab"
Sponsor: INHS

The public hearing will allow the opportunity to comment in-person or virtually. For instructions, see the posted agenda for the meeting at the Agenda Center of the City of Ithaca website: <http://www.cityofithaca.org/agendacenter>. The public hearing can also be viewed non-interactively on the City of Ithaca's Public Meetings YouTube channel: https://www.youtube.com/channel/UC7RtJN1P_RFaFW2_lVCnTrDg. Written comments may be submitted to amendizabal@cityofithaca.org or Anisa Mendizabal, IURA Community Development Planner, 108 E. Green St., Third Floor, Ithaca, NY 14850 or the City Clerk at the same address, First Floor. **Deadline for submission:** January 7, 2026 at 12:00 noon. For questions, contact: amendizabal@cityofithaca.org or the Ithaca Urban Renewal Agency at (607) 274-6547. If you have a disability and require accommodation to fully participate, please contact the Ithaca City Clerk's Office at (607) 274-6570 (Option 2) at least 48 hours prior to the end of the 30-day Public Comment Period, if possible. 12/19/25 #11929283



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CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Ithaca Urban Renewal Agency
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Nels Bohn
DATE: January 7, 2026
RE: Ithaca Farmers Market Parking Agreement with Cayuga Medical
ITEM #: 3.2

A public hearing is being held to receive public input on a proposed modification to the lease of City-owned property at Steamboat Landing, which would authorize the Ithaca Farmers Market Cooperative to enter into a 75-space commercial parking lease with Cayuga Medical and requires Common Council approval.

ATTACHMENTS:

[legal ad - IFM lease parking to Cayuga Medical at Steamboat Landing 12-22-25.docx.pdf](#)

Govt Public Notices

Originally published at ithacajournal.com on 12/22/2025

Public Hearing

City of Ithaca

Modification to the Ithaca Farmers Market Urban Renewal Project

The City of Ithaca Common Council will hold a public hearing at 6:00 p.m., Wednesday, January 7, 2026, in Council Chambers of City Hall at 108 E. Green Street, Ithaca, NY, on a proposed modification to the 2010 urban renewal project that authorized the Ithaca Farmers Market Cooperative, Inc. (IFM) to lease the City-owned Steamboat Landing Site at 545 Third Street, Ithaca, NY for a producer-to-consumer market. IFM seeks authorization to contract with Cayuga Medical for use of up to 75 spaces in the newly improved 225-space parking lot for employee parking at times when the market is not in operation.

Send written comments to Common Council, c/o City Clerk, City of Ithaca, 108 E. Green Street, Ithaca, NY 14850.

Further directions for public comment will be described in the meeting notice at the Agenda Center: [http://](http://www.cityofithaca.org/AgendaCenter)

www.cityofithaca.org/AgendaCenter. For more project information, contact Nels Bohn at: nbohn@cityofithaca.org.

12/22/2025 11928034



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Ithaca Urban Renewal Agency
Shaniqua Lewis,

MEMORANDUM

TO: Common Council
FROM: Nels Bohn, IURA Director of Community Development
DATE: January 7, 2026
RE: Reallocation of HUD Entitlement Funds-CDBG
ITEM #: 6.1

Reallocation of HUD Entitlement Funds to Meet Community Development Block Grant
(CDBG) Timeliness Requirement

ATTACHMENTS:

[Reso_CC_-_2024_and_2025_Action_Plan_Amendment_Nels_Bohn.pdf](#)
[memo CC memo - 2023 2024 2025 program amendm_Nels Bohn.pdf](#)

Reallocation of HUD Entitlement Funds To Meet the CDBG Timeliness Requirement

WHEREAS, on July 25, 2025, the IURA adopted a Community Development Block Grant (CDBG) Timeliness Work Out Plan (Work Out Plan) to ensure City of Ithaca CDBG funds are expended to comply with HUD regulations, and

WHEREAS, the Work Out Plan commits the IURA to evaluate in November if the IURA is on-target to meet the CDBG timeliness requirement on June 1, 2026 and identify alternative CDBG projects as needed, and

WHEREAS, several CDBG projects either (1) do not project full disbursement of CDBG funds prior to expiration of their funding agreement, (2) declined 2025 funding due to internal and external conditions, or (3) are projecting a delay in implementation indicating they are better suited for future funding rounds, and

WHEREAS, the IURA determined that CDBG expenditures are not on target to meet the CDBG timeliness test unless over \$200,000 is reallocated to alternative projects ready for implementation, and

WHEREAS, a reallocation of more than \$25,000 of CDBG funds to a specific project constitutes a substantial amendment to an Annual Action Plan requiring a public hearing, a 30-day public comment period, Common Council and HUD approval, and

WHEREAS, IURA staff-initiated consultation with past and current grantees and City departments to identify potential eligible and implementable non-public service CDBG projects that can expend funds in a timely manner, and

WHEREAS, at its November 13, 2025 meeting, the IURA recommended a series of program amendments that will timely expend CDBG funds and provide strong benefit to the community; now, therefore, be it

RESOLVED, that the City of Ithaca Common Council hereby approves substantial amendments to the 2023, 2024 and 2025 HUD City of Ithaca Annual Action Plans to address CDBG timeliness requirements as follows:

SUBTRACT

\$35,000	2023, Project #2, Homeowner Rehabilitation, INHS
\$32,500	2024, Project #8, Work Preserve: Job Placements, Historic Ithaca, Inc.
\$67,500	2025, Project #8, Work Preserve: Job Placements, Historic Ithaca, Inc.
<u>\$70,400</u>	2025, Project #9, Southside Community Center Upgrades (Resiliency Hub), SSSC, Inc.
\$205,400	

ADD

\$70,400	Southside Community Center Electrical Upgrades & Fire Alarm System (sponsor: City of Ithaca)
\$50,000	2022, Project #1, 215 Cleveland Avenue for-sale affordable home funding shortfall (sponsor: Ithaca Neighborhood Housing Services, Inc.)
<u>\$85,000</u>	Cass Park ADA Public Restroom and Pavillion funding shortfall (sponsor: City of Ithaca),
\$205,400	



MEMORANDUM

Date: December 1, 2025

To: Common Council

From: Nels Bohn, IURA Director of Community Development

RE: **Reallocation of HUD Entitlement Funds to Meet CDBG Timeliness Requirement**

EXECUTIVE SUMMARY

The Ithaca Urban Renewal Agency (IURA) administers the HUD Entitlement Grant program on behalf of the City that includes both Community Development Block Grant (CDBG) and Home Investment Partnership Program (HOME) funding. The IURA recommends a reallocation of CDBG funding from canceled or delayed projects to the following alternative projects to expend funds in a timely manner:

\$70,400	Southside Community Center Electrical Upgrades and Fire Alarm System
\$50,000	INHS, 215 Cleveland Avenue for-sale affordable home
<u>\$85,000</u>	Cass Park ADA Public Restroom and Pavillion
\$205,400	Total

PROJECT HISTORY, BACKGROUND, & ANALYSIS

In 2025, the IURA-administered CDBG program failed to fully expend funds on a timely basis for the first time due to implementation delays in several projects. HUD has recently modified its regulations to require a reduction in future allocations of CDBG funding if the timely expenditure metric is repeated in consecutive years. In response, the IURA adopted a CDBG Timeliness Work Out Plan. This plan calls for identification of back-up CDBG projects in the event other projects experience delays in expending funds. A November assessment by the IURA recommends reallocation of over \$205,000 to projects ready for implementation from projects that have been canceled or will not disburse their full CDBG funding.

KEY ISSUES IDENTIFIED

The IURA develops annual Action Plans that Common Council approves to allocate HUD Entitlement funds for specific activities that primarily benefit low- and moderate-income persons. Significant changes to HUD Action Plans, referred to as “substantial program amendments,” require a public hearing, a 30-day public comment period, Common Council and HUD approval.

QUESTIONS FOR COUNCIL

Common Council is requested to approve IURA-recommended program amendments designed to meet the CDBG timeliness test and provide benefit to low- and moderate-income communities. Common Council may endorse the recommended reallocations or identify alternative projects to fund, though modifications will trigger another 30-day public comment period and public hearing.

POLICY ALIGNMENT STATEMENT

The proposed amendments advance legislative policies to expand affordable housing and modernize public facilities serving low-and moderate-income communities.

BUDGET IMPLICATIONS & FUNDING

A program amendment to the HUD Action Plan does not impact City finances and the recommended program amendment helps safeguard full funding of future CDBG funding to the City.

PUBLIC FEEDBACK

The proposed amendment has been summarized in a legal notice seeking public input during a 30-day public comment period that begins December 3rd. In addition, a public hearing on the matter is scheduled for January 7, 2026. No public comments on the matter were received by the Ithaca Urban Renewal Agency to date.

NEXT STEPS

If approved, the IURA will submit the program amendment to HUD for final approval and execute funding agreements with project sponsors.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Ithaca Urban Renewal Agency
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Nels Bohn, Director
DATE: January 7, 2026
RE: Ithaca Farmers Market Parking Agreement with Cayuga Medical
ITEM #: 6.2

The proposed resolution authorizes the Ithaca Farmers Market Cooperative Inc. (IFM) to enter into a 75-space parking lease with Cayuga Medical at the City-owned Steamboat Landing site leased to the Ithaca Farmers Market (IFM)

ATTACHMENTS:

[Reso CC authorize IFM to lease parking to Cay_Nels Bohn.pdf](#)

[memo CC memo - IFM commercial parking at stea_Nels Bohn.pdf](#)

[legal ad - IFM lease parking to Cayuga Medical at Steamboat Landing 12-22-25.docx.pdf](#)

Authorize IFM to Lease Parking to Cayuga Health at Steamboat Landing

WHEREAS, the Ithaca Farmers Market Cooperative, Inc. ("IFM") seeks approval to enter into a 75-vehicle parking agreement with Cayuga Medical for employee parking at the City-owned Steamboat Landing site, and

WHEREAS, the proposed parking agreement will exclude employee parking on traditional community-based events at Steamboat Landing such as the annual plant sale and CAP's artist market, and

WHEREAS, as of 2009, the City leases the 5.8-acre Steamboat Landing site ("Leased Property") to the Ithaca Urban Renewal Agency (IURA) and the IURA in turn subleases the Site to the Ithaca Farmers Market Cooperative, Inc. to operate a producer-to-consumer market of locally grown and crafted goods, and

WHEREAS, the Leased Property contains a large market pavilion, a dock, and a 225-space parking lot developed and maintained by IFM, and

WHEREAS, the lease term expires in 2028 but provides an option to IFM for an additional 20-year renewal period, and

WHEREAS, IFM pays rent of \$38,689 in 2025 that is collected by the IURA and transferred to the City, and

WHEREAS, authorized uses at the Leased Property are (1) A producer-to-consumer market featuring local grown and crafted goods at least two days per week for at least six month of the year, (2) rental of the pavilion to others for occasional events, (3) up to a 50-vehicle park'n'ride operation, and (4) any other, additional use by IFM subject to the consent of the IURA and Mayor; however the Leased Property shall remain open at times the market is not in operation for use by the general public for passive, non-exclusive, low impact and low intensity recreational uses, and

WHEREAS, IFM currently operates a farmers' market on weekends, April thru November and recently completed a \$3.8 million project to upgrade the 225-space parking facility for which IFM contributed over \$500,000, and

WHEREAS, the IURA considered this matter at their November 20, 2025 meeting and recommended the following action; now, therefore, be it

RESOLVED, that the Common Council for the City of Ithaca hereby authorizes amendments to the City lease of the Steamboat Landing site, and the IURA sublease of the same site, to the Ithaca

Farmers Market Cooperative, Inc. to authorize a commercial parking use as a permissible accessory use subject to the following conditions:

- Up to a total of 75 parking spaces in the 225-space parking lot may be leased to Cayuga Medical for employee parking to meet parking needs at their medical facility located at 401 Cayuga Park Lane;
- Such accessory parking use shall not interfere with traditional community-based events at Steamboat landing, such as the plant sale and CAP's artist market;
- Any signage designating employee parking spaces shall be approved by the IURA Chairperson to protect the predominant public use of the premises at times when the market is not in operation for use by the general public for passive, non-exclusive, low impact and low intensity recreational uses;
- Commercial general liability insurance shall be carried by Cayuga Medical listing the City of Ithaca and IURA as additionally insured parties, and be it further

RESOLVED, That the Mayor, subject to review by the City Attorney, is hereby authorized to execute any and all documents to implement this resolution.



MEMORANDUM

Date: December 8, 2025

To: Common Council

From: Nels Bohn, IURA Director of Community Development

RE: **Lease Amendments – Ithaca Farmers Market Parking Agreement with Cayuga Medical**

EXECUTIVE SUMMARY

The proposed resolution authorizes the Ithaca Farmers Market Cooperative Inc. (IFM) to enter into a 75-space parking lease with Cayuga Medical at the City-owned Steamboat Landing site leased to IFM.

PROJECT HISTORY, BACKGROUND, & ANALYSIS

Cayuga Medical approached IFM to inquire if they could lease 75 parking spaces for employees at their nearby medical building located at 401 Cayuga Park Lane. IFM recently completed a \$3.8 million upgrade to the 225-space parking lot which required a local match of \$570,000. IFM seeks approval to enter into a commercial parking lease with Cayuga Medical.

IFM has subleased the Steamboat Landing site for a producer-to-consumer market of locally grown and crafted goods since 2009. The initial term of the sublease expires in 2028 when IFM has an option to renew the lease for an additional 20-year period. IFM currently pays rent of \$38,689 that is collected by the Ithaca Urban Renewal Agency (IURA) and paid over to the City.

When municipalities lease property they generally must seek the highest marketable value and cannot choose the lessee or negotiate conditions for future use. An urban renewal agency is allowed to select a preferred lessee and negotiate terms for future use following a public hearing and Common Council approval. As the City was desirous to make the Steamboat landing site available for the Ithaca Farmers Market, the City leased the property to the IURA for the purpose of structuring a proposed lease agreement with IFM. The customized IURA-proposed lease was approved by Common Council in 2009. Therefore, the City leases the site to the IURA and the IURA subleases the site to IFM. Any substantial change to the leases requires Common Council approval.

The lease authorizes the following uses:

1. A producer-to-consumer market featuring local grown and crafted goods at least two days per week for at least six months of the year,
2. rental of the market pavilion to others for occasional events,
3. up to a 50-vehicle park'n'ride operation, and
4. any other, additional use by IFM subject to the consent of the IURA and Mayor;

Importantly, the sublease requires that the property remain open at times the market is not in operation for use by the general public for passive, non-exclusive, low impact and low intensity recreational uses.

IFM requests that leasing up to 75 spaces to Cayuga Medical, a non-profit entity, for employee parking be authorized as a permissible accessory use in their sublease.

KEY ISSUES IDENTIFIED

For environmental and urban design reasons, City policy generally supports shared parking rather than each user developing separate parking facilities. Use of the existing parking lot for off-site employee parking could raise concern for retaining the public nature of the site when the market is not in operation for public use for recreational uses, however at least 100 parking spaces in the 225-space parking lot will remain available for public use at all times.

Authorizing the requested parking agreement also provides a means to support IFM financially recover some of their \$570,000 investment in the new parking lot and support further site improvements without any draw on the City general fund.

QUESTIONS FOR COUNCIL

Common Council is requested to approve amendments to the City lease of the Steamboat Landing site to the IURA, and the IURA sublease of the same site to the Ithaca Farmers Market Cooperative, Inc. to authorize a 75-space commercial parking use with Cayuga Medical as a permissible accessory use.

POLICY ALIGNMENT STATEMENT

Supporting a financially viable Ithaca Farmers Market advances the City's economic and community legislative policy as the market serves as a major tourism destination that generates jobs, sales tax, locally grown fresh food, and offers economic opportunities for start-up businesses from a wide variety of backgrounds.

BUDGET IMPLICATIONS & FUNDING

The proposed action does not adversely impact City finances.

PUBLIC FEEDBACK

A public hearing on the matter is scheduled for January 7, 2026. No public comments on the matter were received by the Ithaca Urban Renewal Agency to date.

NEXT STEPS

If approved, the IURA will prepare lease amendments for execution by the Mayor and Chair of the IURA.

Govt Public Notices

Originally published at ithacajournal.com on 12/22/2025

Public Hearing

City of Ithaca

Modification to the Ithaca Farmers Market Urban Renewal Project

The City of Ithaca Common Council will hold a public hearing at 6:00 p.m., Wednesday, January 7, 2026, in Council Chambers of City Hall at 108 E. Green Street, Ithaca, NY, on a proposed modification to the 2010 urban renewal project that authorized the Ithaca Farmers Market Cooperative, Inc. (IFM) to lease the City-owned Steamboat Landing Site at 545 Third Street, Ithaca, NY for a producer-to-consumer market. IFM seeks authorization to contract with Cayuga Medical for use of up to 75 spaces in the newly improved 225-space parking lot for employee parking at times when the market is not in operation.

Send written comments to Common Council, c/o City Clerk, City of Ithaca, 108 E. Green Street, Ithaca, NY 14850.

Further directions for public comment will be described in the meeting notice at the Agenda Center: [http://](http://www.cityofithaca.org/AgendaCenter)

www.cityofithaca.org/AgendaCenter. For more project information, contact Nels Bohn at: nbohn@cityofithaca.org.

12/22/2025 11928034



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Attorney's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: City Attorney's Office
DATE: January 7, 2026
RE: Contract Agreement- Town of Ithaca Fire Protection District
ITEM #: 6.3

Resolution Authorizing the Execution of an Agreement with the Town of Ithaca for the Provision of Fire Protection Services

ATTACHMENTS:

[Resolution Authorizing the Execution of an Agreement for the Provision of Fire Protection Services with the Town of Ithaca.pdf](#)

[Contract--Fire Protection--City and Town of Ithaca 2026-2030 clean 12-19-25 IG 12-19-SHB formatted 12-30-25.pdf](#)

Resolution Authorizing the Execution of an Agreement with the Town of Ithaca for the Provision of Fire Protection Services

WHEREAS, the existing agreement between the Town of Ithaca and the City of Ithaca by which the Ithaca Fire Department provides service to the Town of Ithaca expired on December 31, 2025; and

WHEREAS, the Town and the City have agreed on terms for a new three-year agreement (the “Agreement”) with two optional one-year extensions, to be made retroactive until January 1, 2026; and

WHEREAS, the new Agreement simplifies and clarifies financial reporting requirements, cleans up archaic provisions, and modernizes payment provisions, including by more appropriately reflecting the substantial administrative costs to the City of supporting IFD operations; and

WHEREAS, the extension will provide stability in fire operations for both the Town and City; now, therefore, be it

RESOLVED, that the City Manager, subject to the advice of the City Attorney, is hereby authorized to execute an agreement substantially similar to the agreement included herewith, and to include such exhibits thereto as may be recommended by the City Controller, the City Attorney, and the Fire Chief.

THIS AGREEMENT

Made as of the 1st day of January, 2026, by and between THE CITY OF ITHACA, Tompkins County, New York, (hereinafter referred to as the “City”), party of the first part, and THE TOWN BOARD OF THE TOWN OF ITHACA, (hereinafter referred to as the “Town”, acting as and for the Fire Protection District of the said town.

WITNESSETH:

WHEREAS, the party of the first part is the City of Ithaca, and has under its control and custody personnel and fire fighting equipment of the Ithaca Fire Department, and

WHEREAS, there has been duly established in said Town a fire protection district known as “Town of Ithaca Fire Protection District”, embracing all of the territory in said Town, except the Village of Cayuga Heights, and

WHEREAS, following a public hearing duly held pursuant to New York Town Law § 184, said Town was duly authorized to contract with the party of the first part for fire protection and emergency medical service to the portion of said district hereinafter defined, upon the terms and provisions herein set forth;

NOW, THEREFORE, IT IS MUTUALLY AGREED as follows:

1. Provision of Services. The City shall provide for the portions of the Town of Ithaca Fire Protection District covered by this Agreement fire protection services and emergency medical services equal in level, types and quality to the services the Ithaca Fire Department provides throughout the City. The Ithaca Fire Department shall, to the best of its ability perform its services using the methods, equipment and apparatus, numbers of personnel, timing, and degree of skill and care ordinarily exercised under similar conditions by experienced, competent and reputable fire departments operating in the same or similar locality at the time of performance. The Ithaca Fire Department shall, to the best of its ability keep its facilities,

apparatus and equipment in good working condition at all times. The City and Ithaca Fire Department shall comply with all applicable laws and regulations in carrying out their duties under this Agreement.

The portions of the Town of Ithaca Fire Protection District covered by this Agreement are hereafter referred to as the “Town of Ithaca Covered Area” and are described as follows:

ALL of the Town of Ithaca, excepting the following areas:

(a) The Village of Cayuga Heights;

(b) The northeast section of the Town of Ithaca that is situated east of the east boundaries of the Village of Cayuga Heights and the City of Ithaca, south of the Village of Lansing/Town of Ithaca boundary, west of the Town of Dryden/Town of Ithaca boundary and north of a line described as follows: Beginning at a point where Forest Home Drive intersects the east boundary of the City of Ithaca with the Town of Ithaca, thence southerly along the Town/City line approximately 250 feet to the westerly end of a dead-end service road running behind the Botanic Gardens Horticulture Building, thence easterly along the toe of a slope of an uphill grade to the south, crossing Judd Falls Road and Caldwell Road and continuing easterly and southeasterly to a point along the center of the elevated grade that runs between the Arboretum Road and New York State Route 366, thence northerly and northeasterly to a point at the northwest corner of the parking area attached to the former Cornell University Transit Facility, and thence northerly to the point where Forest Home Drive crosses the boundary line between the Towns of Ithaca and Dryden.

Such southerly line is more particularly shown on the map attached as **EXHIBIT A** by the dashed line running generally easterly from the Town of Ithaca/City of Ithaca boundary to the Town of Ithaca/Town of Dryden boundary.

Generally, the intent is to exclude from the service area those buildings and properties generally accessed from Arboretum Road and north, and to include in the service area those

buildings and properties that are generally accessed from Tower Road, from Judd Falls and Caldwell Roads south of Arboretum Road, or accessed from NYS Route 366, and south.

(c) The Cornell University Filtration Plant is excluded from the area to be serviced under this Agreement (this exclusion being the only change in territorial coverage in this Agreement compared to the January 1, 1995, agreement between the parties).

(d) Notwithstanding the foregoing, those portions of the Cornell University North Campus Residential Expansion ("NCRE") sited within the Town are included in the area to be serviced under this Agreement.

(e) The parties agree that the Town may, on at least six months' written notice to the City, and without the approval of the City, eliminate any lands from the Town of Ithaca Covered Area, provided, however, that such elimination shall not alter the Town's payment to the City as set forth in Section 5 hereof until January 1 of the year following notice of at least six months. The Town may not add to the Town of Ithaca Covered Area without the written consent of the City.

2. Fire Hydrants.

(a) To aid in the determination of hydrant and water source locations with reference to particular alarms, the Town shall furnish to the City the most recently available map of all areas of the Town having hydrant service, showing hydrant locations, normal static hydrant pressure, hydrant flows, static water sources, streets and highways, location and addresses of improved properties with hydrants and the identity of the owner thereof. It shall be the sole responsibility of the Town of Ithaca to provide the City with updated changes in hydrant locations, static sources, and to the related data set forth herein, immediately as they occur. Revised maps reflecting such changes shall be provided at least quarterly. The Ithaca Fire Department shall be entitled to rely on such map and shall not be responsible for any inaccuracies therein.

(b) The Town of Ithaca shall perform all water system testing required by the Insurance Services Organization (ISO), at the frequency specified. The Town will adopt and maintain the NFPA color coding system indicating hydrant flows.

(c) The Town of Ithaca shall provide information on any impaired hydrant or system as soon as practicable after the Town becomes aware of the impairment, and on any new or modified installation that does not meet minimum standards as specified by the American Water Works Association (AWWA), the National Fire Protection Association (NFPA), or the New York State Uniform Fire Prevention and Building Code.

(d) The Town shall maintain an inventory of replacement hydrants adequate to ensure timely replacement of damaged hydrants when necessary.

(e) For purposes of maintenance and testing, any hydrant use by the Ithaca Fire Department shall be according to procedures established by the Town and/or the Southern Cayuga Lake Intermunicipal Water Commission (Bolton Point).

3. Use of Mutual Aid. The City warrants and covenants that as soon as a serious fire or other emergency results in a situation that could potentially leave the Town of Ithaca Covered Area without adequate coverage from the Ithaca Fire Department, the City, through its Fire Department, shall immediately seek protection through the Tompkins County mutual aid assistance agreement first dated September 12, 1955 and revised February 25, 2016, as it may be further amended or renewed from time to time, which provides coverage to the Town of Ithaca through deployment of equipment and/or personnel brought into the City or the Town of Ithaca pursuant to the City's request for mutual aid.

4. Term and Review.

(a) The initial term of this Agreement shall be January 1, 2026 through December 31, 2028. Unless a party gives the other party notice of intent not to renew by January 1 of the year in which the Agreement terminates, this Agreement shall automatically renew for up to (2) one-year terms on the same terms and conditions as those set forth in this Agreement. (For the sake of clarity, notice of non-renewal must be given by January 1, 2028 if the Agreement will not be renewed beyond its initial three-year term ending December 31, 2028. Notice of non-renewal must be given by January 1, 2029 if the Agreement will not be renewed beyond its first renewal

period ending December 31, 2029.)

(b) Upon 60 days written notice by either party of a need for a modification, the parties may agree to re-enter negotiation for the purpose of making such change or modification as may be agreed upon. In addition, the parties will hold a joint annual review no later than August 15, 2026, and August 15 of each subsequent year of this Agreement. The purposes of the annual review are to clarify any confusion in the Agreement, review expenditures, propose any changes to the Agreement and discuss any changes in Fire Department operations and costs regarding the provision of the services cited in this Agreement for the next year.

5. Payments by Town.

Town Law § 184(5) requires contracts for town fire protection districts to state a definite sum to be paid each year for all of the services to be rendered thereunder. The Town shall pay the City the following annual sums for the City's services under this Agreement:

2026: \$5,317,062

2027: \$5,646,713

2028: \$5,996,809

(If renewed):

2029: \$6,368,611

2030: \$6,763,465

The Town shall pay each annual sum in twelve (12) equal monthly payments. Each monthly payment shall be due by the fifteenth (15th) day of that month.

The parties agree that the annual sums set forth above for 2026-2030 shall be adjusted pursuant to the following methodology. The parties agree to amend this Agreement accordingly and in as expeditious a fashion as possible to state the adjusted sums once they are agreed upon. Under no circumstances shall the total amount paid by the Town in any calendar year, plus any adjustment for that year paid in the subsequent year, exceed the Town's share of the annual budgeted amount for Net Expenditures (defined in Section 5(e)(i) below and approved by the

Town in Section 6 below) without the Town's prior written approval of any budget changes resulting in such increase.

(a) Net Expenditures. The Town's annual sums for the years 2026-2028 (and if renewed, for 2029 and 2030) shall be adjusted upward or downward by the amount of any Town underpayment or overpayment, as the case may be, for the preceding year. Each year, the Town's share of the preceding year's annual Net Expenditures for the Ithaca Fire Department shall be calculated as set forth below in Sections 5(b) et seq.

On or before the 10th of each month, the City shall supply to the Town a statement in substantially the form annexed hereto as **EXHIBIT B** certified by the Fire Chief or City Controller as being true and correct detailing the actual revenues and expenditures of the Ithaca Fire Department for the preceding month. The actual annual Net Expenditures for a calendar year will be determined by March 31 of the subsequent calendar year, with a corresponding adjustment being made in the next monthly payment after the Agreement is amended to reflect the adjustment. Any additional recommended or required adjustments resulting from any State Comptroller's audit, the City Controller's report, or an independent auditor's report shall become the subject of review, discussion and agreement between the parties prior to any such adjustment being reflected in any subsequent payment. This Agreement shall be amended as soon as possible once adjustments are agreed upon to reflect all adjustments.

The City shall maintain records and accounts of all activity, income, expenses, receipts and payments relating to the Ithaca Fire Department, which accounts shall include all of the line items set forth in **EXHIBIT B**. The City, upon prior reasonable notice, shall provide the Town and its agents access to the City's accounting books, records, accounts, payroll documents and facilities that are directly pertinent to this Agreement for the purposes of examining, auditing, and inspecting all accounting books, records, work data, documents, and activities related to this Agreement. The City shall maintain such books, records, data and documents in accordance with generally accepted accounting principles and shall clearly identify and make such items accessible to the Town and its agents during the City's performance under this Agreement and for a period of six (6) years from the date of the Town's final payment. The City shall permit the

Town and its agents to reproduce documents or excerpts of documents by photocopying or electronic means, provided that the Town shall reproduce such documents on the City's premises unless it receives prior consent from the City to do so off-site.

The City will provide the Town with a copy of the City Controller's annual financial report for the Ithaca Fire Department within 120 days of the close of the calendar year unless the time is extended by mutual written agreement. The City shall provide to the Town copies of an annual independent auditor's report and any State Comptroller's audit report that includes Ithaca Fire Department operations within 14 days of receipt of such reports. All adjustments for each municipality's share shall be finalized as each final report is received, subject to the parties' review and discussion as set forth above.

Upon expiration of this Agreement or if this Agreement terminates early, instead of applying adjustments to future payments, the adjustments shall be made in cash from one party to the other no later than June 1 immediately following the March 31 finalization of actual costs, and with respect to adjustments flowing from final figures as determined by the State Comptroller, the City Controller, and/or the independent auditor, within one month of the date of receipt of the final report from each of said persons or entities, respectively.

(b) The total taxable assessed valuation of real properties in the City shall be combined with the total taxable assessed valuation of real properties in the Town of Ithaca Covered Area. Such amounts are hereinafter referred to as the "Combined Taxable Assessed Valuation". The taxable assessed valuation of such real properties shall be determined by using the most recent Final Assessment Roll numbers that exist prior to the calendar year in question.

(c) The portion of the Combined Taxable Assessed Valuation located within the Town of Ithaca Covered Area shall be divided by the total Combined Taxable Assessed Valuation. The result is referred to hereinafter as the "Town's Percentage".

(d) For Net Expenditures that do not exceed the adopted budget for the preceding year,

the Town's Percentage shall be multiplied times the Net Expenditures for the preceding year, and the resulting figure shall be deemed the Town's Percentage Share. The difference between the Town's Percentage Share and the annual sum stated above for the relevant year shall constitute the adjustment described in this Section.

For Net Expenditures that exceed the preceding year's adopted budget (including but not limited to expenditures for overtime and equipment), the Town's share and the corresponding adjustment will be calculated by multiplying (i) the five-year rolling average of the Town's percentage of the total number of calls for fire and emergency medical services by (ii) the amount by which Net Expenditures exceed the adopted budget. The Ithaca Fire Department will provide the Town on an annual basis the total number of calls for service and the Town's percentage of that total. For 2026, the Town's percentage of total calls for service is 23.7%.

(e) For the purpose of this Agreement (including Sections 5(b) through 5 (d) above) the following terms shall have the following meanings:

(i) The term "Net Expenditures" shall mean the actual expenditures of the Ithaca Fire Department including the items set forth in the budget discussed below, less all revenues received by the City for Fire Department operations except for the Town's payments pursuant to this Agreement and except for general tax revenues raised by City taxes. The following matters shall govern the calculation of "Net Expenditures":

(A) There will be included in revenues any amounts received by the City or the Town from any contributions from any tax-exempt entity provided for fire protection or emergency medical services, refunds, gifts, grants, state or federal aid related to the Ithaca Fire Department, income from the sale of Fire Department assets, code and any other inspection fees or enforcement revenues related to services performed by Fire Department personnel, rental income, and any other forms of income payable to the Fire Department, to the City, or to any other entity associated with either, for Fire Department-related

activities or expenses.

- (B) Only expenses relating directly to the operation of the Ithaca Fire Department shall be included in Net Expenditures (e.g., equipment purchase and maintenance, building purchase, renovation or maintenance, salaries and fringe benefits of Fire Department personnel, gasoline, supplies, and other items directly related to the operation of the Fire Department).
- (C) To the extent there is equipment or buildings that are used by the Ithaca Fire Department and by other City departments or personnel, there shall be a reasonable allocation of the expenses related to such equipment or buildings between Fire Department and non-Fire Department uses, with only the portion attributable to the Fire Department to be included when determining Net Expenditures. Occasional use by other entities (City or otherwise) or for other purposes such as for a polling place, SRT exercise facility, or similar occasional uses that are not inconsistent with Fire Department use, do not require allocation.
- (D) Both parties understand that there are general City overhead expenses outside of the internal Ithaca Fire Department administrative services that are required to operate the Fire Department. These include expenses from the City Manager's Office, City Controller's Office, Department of Public Works, Department of Information and Community Engagement, City Chamberlain's Office, City Attorney's Office, and Human Resources Department. These and other such expenses shall be considered administrative fees. The Town shall pay the City Three Hundred Thirty Thousand Dollars (\$330,000) for its share of such administrative fees for the year 2026. The administrative fees are included in the annual sums listed for the years 2026-2030 at the beginning of Section 5, and the Town shall pay the City this fee in equal installments on a monthly basis as part of its annual sum payments. For each year after 2026, the Town's share of the administrative fees to be included in the annual sum shall

be calculated by multiplying 6.617% by the Town's Percentage Share (defined in Section 5(d) above) of that year's budgeted Net Expenditures for the Ithaca Fire Department.

(E) In addition to the amounts included in Net Expenditures pursuant to subparagraphs (A) through (D) above and subject to the provisions of subparagraphs (F) through (H) below, there shall be included in Net Expenditures any required debt service payments related to equipment and/or buildings dedicated solely to Ithaca Fire Department use, provided that the debt service relates to bonds or notes issued for a period equal to the period of probable usefulness for the capital item as determined by the Local Finance Law of the State of New York (presently Section 11.00 of such Local Finance Law), unless the Town consents to a shorter period.

(F) No depreciation shall be included in the calculation of Net Expenditures.

(G) Net Expenditures include (I) actual expenses incurred by the City, and not reimbursed from bonds or other forms of debt, to pay for equipment (including capital renovations to existing equipment) and improvements (including renovations or additions to the Town and City fire stations) and (II) the debt service expenses (principal and interest payments) during the year for any debt incurred to pay for equipment or improvements.

It is the intention that if equipment is purchased and paid for in cash during the year, the entire cost of the equipment shall be included in Net Expenditures. If equipment is purchased and paid for by financing over a period of years, only the portion of debt paid during the year shall be considered as part of Net Expenditures. There is included in Net Expenditures any debt service during the year in question related to purchases or construction in earlier years of this or any preceding contract, provided that no purchases or construction incurred earlier than 1989 shall be so included.

(H) Expenditures out of grants received for purposes that would not otherwise be authorized expenditures under the terms of this Agreement may nevertheless be included in Net Expenditures up to the amount of grant revenues received to cover such expenditures.

(ii) The term “budget” means the budget prepared and formatted as set forth in this Agreement in the form attached as **EXHIBIT B** with review by the Town, which includes the revenues and expenditures authorized for inclusion by the terms of this Agreement as the same is adjusted in each succeeding year as set forth herein to reflect the actual expenses and revenues of each year.

6. Review of Operating Budget. The City agrees to provide the Town with the budget proposed to the City Manager by the Ithaca Fire Department by September 1 of each year, and the City Manager’s proposed budget by the first Wednesday of October in each year. The form of the budget shall include, at a minimum, all of the line items set forth in the Year 2026 budget summary attached as **EXHIBIT B**. The Town Board shall have the opportunity to provide input to the City Manager and Council during the balance of the budget deliberation process. The Town shall be notified of, and have the opportunity to attend and participate in, the Common Council budget meetings which may be held to review and approve the Ithaca Fire Department’s capital and operating budgets. The City shall provide notice of such meetings as soon as they are scheduled.

7. Approval of Capital Budgets. The City agrees to provide the Town with the capital improvement budget requests proposed to the City Manager by the Ithaca Fire Department by September 1 of each year, and the City Manager’s proposed budget by the first Wednesday of October of each year. The parties agree that capital renovations in excess of \$100,000 per project or aggregating in excess of \$200,000 per annum, and new station construction, shall be accomplished within a capital budget for each project. The budgets shall be approved by the appropriate governing body of each municipality prior to commitments for construction or financing of any of such projects by the City. For the purposes of this Agreement a “capital”

expenditure or renovation shall mean any improvement of a capital nature having a period of probable usefulness set forth in Section 11.00 of the Local Finance Law.

(a) The replacement schedule for "heavy apparatus," e.g. engines, aerial ladders, and light rescues, shall be based upon a 15 year useful life. The replacement of Heavy Rescue shall be based upon a 20 year useful life.

(b) **EXHIBIT C** shall project for the succeeding 15 years the proposed replacement schedule for fire apparatus costing in excess of \$100,000 per vehicle.

8. Payment of Fire Department Expenses. No Ithaca Fire Department expenses shall be paid out of any of the funds paid by the Town hereunder except in accordance with established City procedures authorized by the Common Council. No payments out of any funds paid by the Town hereunder shall be authorized in any budget line in excess of the total amount of the Fire Department Budget until the budget has been adjusted in accordance with procedures for budget adjustments authorized by the Common Council or as otherwise provided by law. Without limiting any other remedy of the Town, if payments are made in violation of this provision, the Town may withhold future installments until there is compliance with this provision.

9. Fire Stations in Town, Manner of Title, Lease, Reimbursement. Title to the land for the existing fire stations located on South Hill at 965 Danby Road and West Hill at 1240 Trumansburg Road in the Town was taken in the name of the Town and then leased by the Town to the City by a Lease Agreement dated July 14, 1989, currently pending modification and renewal, attached hereto as **EXHIBIT D**. The Lease Agreement, as it may be modified and renewed, contains further relevant provisions about these fire stations. The parties agree that the terms of the Lease Agreement shall continue to govern until such time as this Agreement expires or the Lease Agreement is modified or renewed.

10. Insurance.

(a) The City as the lessee of the real property underlying the South Hill (Station 5) and West Hill (Station 6) fire stations shall provide adequate property insurance coverage for the

property and buildings during the duration of the lease. The cost of the insurance shall be included in the annual operating budget of the Fire Department. The City shall name the Town as an additional insured on said coverage. Proof of such coverage is set forth as **EXHIBIT E**, and such coverage shall be maintained throughout the term of this Agreement.

(b) The City shall also procure and maintain the following insurance coverages with limits of liability not less than the limits specified. Except for collision and comprehensive and workers' compensation and disability coverage, insurance coverages shall not be provided by self-insurance.

(i) Commercial General Liability: including Premises/Operations, Contractual Liability, Products/Completed Operations, Personal Injury and Broad Form Property Damage--Occurrence Form required. The Town of Ithaca and its officers, employees, board members, agents and elected officials are to be included as Additional Insureds with respect to fire protection and other related services rendered to the Town.

Each Occurrence:	\$ 1,000,000
Products/Completed Operations Damage Limit:	\$ 10,000,000
Personal and Advertising Injury Limit:	\$ 1,000,000
General Aggregate Limit:	\$ 10,000,000
Damage to Rented Premises (each occurrence):	\$ 100,000
Medical Expense:	\$ 5,000

(ii) Automobile Liability: \$1,000,000 - Any Owned, Hired and Non-Owned Autos. The Town of Ithaca and its officers, employees, board members, agents and elected officials are to be included as Additional Insureds with respect to fire protection and other related services rendered to the Town.

(iii) Umbrella Policy: \$5,000,000 – Occurrence Form Required. Must state Follow Form of General Liability and Automobile Liability Policies. Statement

regarding Follow Form coverage must be on certificate of insurance.

(iv) Additional Specifications: All insurance shall be written with insurance carriers licensed by the State of New York Insurance Department and have an AM Best's Rating of A XI or better. Prior to the execution of this Agreement and throughout the term of the Agreement, the City shall furnish the Town with written evidence from its insurer(s) of the insurance coverage described herein through use of certificates of insurance acceptable to the Town. Broker signature is not acceptable. All certificates shall contain a thirty (30) day notice of cancellation, non-renewal or material change to the Town of Ithaca. The City shall not take any action to cancel or materially change any of the insurance required under this Agreement without the Town's prior written approval of such cancellation or change. The foregoing insurance coverage is not intended to nor does it limit the liability of the City to hold the Town harmless.

(v) Proof of the coverage required by this subparagraph b is set forth as **EXHIBIT F** and such coverage shall be maintained throughout the term of this Agreement.

11. Equipment Reimbursement. Upon termination of the Agreement for any cause the Town shall be entitled to receive 32.3% of those items of equipment which originally cost \$25,000.00 or more, or 32.3% of the dollar value of such equipment purchased by the City during the term of this Agreement reduced by the depreciation on such equipment. For this purpose equipment so purchased shall be depreciated on a straightline basis over fifteen years assuming a 20% residual value. To the extent feasible the equipment to be transferred to the Town will be the equipment located in the stations located within the Town. Such conveyance shall be by such appropriate documentation such as bills of sale, vehicle registration, etc. as may be reasonably required by the attorneys for the Town. If the City fails to transfer such items, the Town may seek specific performance in addition to any other remedies available to the Town under law or equity.

Notwithstanding the foregoing, if the City terminates the Agreement pursuant to Section 21 because the Town has not authorized payment of a Town share of Net Expenditures that exceed an approved budget, the Town's financial interest in the equipment described above shall be reduced by the amount of the unpaid share.

12. INTENTIONALLY OMITTED.

13. Staffing Levels. As of December 1, 2025, the number of paid career personnel in the Ithaca Fire Department used as a basis for determining shared costs under this Agreement is 54 permanent firefighters, eight lieutenants, six assistant chiefs, one deputy chief, one fire chief, one administrative assistant, and one administrative coordinator, for a total of 72 positions. In the event that the City proposes to approve additional positions, such positions must be approved in writing by the parties hereto and made an amendment to this Agreement in order to be considered as a shared cost. Should the City choose to add any positions which are not approved in writing by the Town, all costs relating thereto will be borne solely by the City. Should the Town request the addition of any paid positions or paid career personnel which are not approved in writing by the City, all costs relating thereto will be borne solely by the Town. Unless the Town agrees in writing to a lesser level of staffing, the City agrees that each of the two fire stations located in the Town of Ithaca will be staffed in the same manner as individual stations in the City.

14. Town Inclusion in Fire Department Governance.

(a) Updates. The Fire Chief shall, by email or in hard copy, provide to the Town quarterly written updates regarding substantial fiscal or operational issues as to which new information (since the previous written update) may usefully be provided. The Fire Chief shall additionally provide such oral updates to the Town as and when reasonably requested.

(b) Fire Chief Search Committee. On such occasions as the City is establishing a search committee pursuant to Section C-26 of the City Charter for appointment of the position of Fire Chief, an appropriate representative of the City shall provide the Town with written notice of the same, and thereafter the City Manager of the City shall appoint as a nonvoting member of the

search committee one designee of the Town from two names recommended by the Town Board of the Town of Ithaca, provided, however, that the Town may initially recommend one name if that name subsequently proves satisfactory to the City Manager. In the event that a Town-recommended nonvoting member of the search committee has not been appointed by the City Manager, the search committee may begin its work subject to that member joining the search committee as soon as appointed, said appointment not to be unreasonably delayed.

The Town-recommended member of the search committee shall maintain the confidentiality of information obtained during the search process to the same standard and requirements as other members of the search committee.

(c) Strategic Planning. On such occasions as the City is establishing a formal Strategic Planning committee specific to the Fire Department, the City shall provide a Town designee with a seat on that Committee according to the same procedures and requirements as specified in the immediately preceding subsection (b).

15. Indemnity. To the maximum extent permitted by law, the City shall defend, indemnify, and hold the Town, its elected officials, public officers, employees, boards and agents harmless from all damages, losses, claims, actions and lawsuits by third parties (including those asserted or brought by Ithaca Fire Department employees and volunteers) for personal injury, death, property damage (including loss of use), contamination of or adverse effects to the environment, or other damages or losses caused by or claimed to be caused by, or arising from or claimed to arise from, the City's answering of calls for fire protection or emergency medical services in the Town or other provision of services related to this Agreement, or arising out of this Agreement in any other way. Such indemnity shall include settlements and reasonable costs of defending such claims, including attorney's fees. To the extent the Town is negligent, the City's indemnification shall not extend to the proportion of loss attributable to the Town's negligence. The City's indemnification also shall not extend to the proportion of loss attributable to the Town's negligence in the event of payments to injured firefighters or representatives of deceased firefighters under the Workers Compensation Law, General Municipal Law, or other New York statutes, where the aforementioned laws allocate liability to the Town for such

payments. The obligation to indemnify shall survive termination of this Agreement whatever the cause of such termination. Indemnification shall be provided for all acts, failures to act, or occurrences occurring during the term of this Agreement. The City shall provide such indemnification for any claims made with respect to actions by the City prior to the termination of this Agreement even if the claim itself is not made until after termination of the Agreement.

16. Exculpation. Nothing herein contained shall be deemed to limit in any lawful way any lawful right of the City, the Town, or any member of the Ithaca Fire Department provided by the general statutes of the State of New York, provided that this provision shall not be deemed to abrogate or modify any rights or obligations provided for in this Agreement.

17. Authority of Chief. It is specifically understood and agreed that the number of personnel, the amount and type of apparatus and equipment dispatched in answer to a fire call or to an emergency medical services call, the manner of fighting the fire, or handling the medical services, and other operations upon the scene of the fire or medical emergency, are matters within the judgment of the Fire Chief of the City of Ithaca Fire Department (the “Chief”) or the Chief’s designees. The City and its officers shall use sound professional judgment based on generally accepted standards in the provision of its fire protection, emergency medical, emergency, and non-emergency services provided pursuant to this Agreement. The word “Chief” shall mean the person duly appointed to that office in the Ithaca Fire Department by the City Manager of the City.

18. Payment of Moneys from Foreign Insurance Companies. The payment by the Town to the City of moneys collected by or received from foreign insurance companies writing property insurance in the Town of Ithaca Fire District for the benefit of the active firefighters serving the Town of Ithaca Covered Area shall be governed by a separate agreement between the parties.

19. Audits. The Town reserves the right to cause an audit of City accounts related to this Agreement on demand. If an overpayment error equal to or exceeding 5% of the Town’s share is not found after final settlement of the preceding year, such audit shall be done at the expense of the Town. If an overpayment error equal to or exceeding 5% of the Town’s contract share is

found after final settlement of the preceding year, the City shall pay for such audit. (An overpayment error in this context is defined as a calculation of the Town's contribution that resulted, or would have resulted, in an overpayment by the Town.)

20. Building Code and Parking Enforcement. The parties agree that each party shall have the respective rights, obligations, and duties with respect to enforcement of the Uniform Fire Prevention and Building Code set forth herein.

(a) The Town of Ithaca shall provide to the Ithaca Fire Chief reports of all fire safety inspections conducted on premises within the Town of Ithaca Covered Area.

(b) The Town of Ithaca shall provide the Ithaca Fire Department Chief or designee the opportunity to review all plans and proposals requiring Fire Department access and to make recommendations to the Town's Director of Code Enforcement as to whether the Town should approve such proposed Fire Department access.

(c) The City's issuance and prosecution of tickets for fire lane and handicapped parking violations in the Town shall be governed by a separate agreement between the parties.

21. Termination and Dispute Resolution.

(a) Notwithstanding any other provision contained herein, either party may terminate this Agreement by giving written notice of such intention to terminate to the other party to be received by the other party at least one full calendar year prior to the date of intended termination. If the Town is the terminating party, it must hold a public hearing pursuant to New York Town Law § 184(8) before it gives written notice of its intention to terminate.

(b) If a party alleges that the other party is in breach of this agreement, or if the Town notifies the City that the Town will not authorize payment of a share of Net Expenditures that exceed an approved budget, the City Manager and Town Supervisor shall meet to discuss the matter within fourteen days after one party notifies the other party that they wish to invoke this provision. If the City Manager or Town Supervisor are not satisfied with the meeting's outcome, then upon the written request of either party, the matter shall be referred to a mutually agreed-on

mediator for non-binding mediation, with the cost borne equally by the parties. If such mediation does not produce a mutually acceptable resolution, a party may thereafter terminate this Agreement upon the shorter of (a) six months' notice running from the termination of the mediation process, or (b) nine months' notice running from the date of the initial meeting between the City Manager and Town Supervisor pursuant to this subparagraph ii.

22. Written Notice. Where notification is required by this Agreement to be given to a party, it shall be in writing and shall be delivered to the Town Supervisor (if the notice is to the Town), or the Ithaca Fire Department Fire Chief (if the notice is to the City), with delivery by hand, certified mail, a commercial courier service, or email with read receipt confirmation to the other party at the addresses below or such other address as is hereafter designated in writing by that party. Notice of a change of address must be made in the same manner as other notices. Notices shall be deemed given when they are received.

Notices to the City are to be addressed to:

Ithaca City Manager
108 East Green Street
Ithaca, New York 14850
Email: citymanager@cityofithaca.org

Ithaca Fire Department Fire Chief
108 East Green Street
Ithaca, New York 14850
Email: ithacafire@cityofithaca.org

with a copy to:

Ithaca City Controller
108 East Green Street
Ithaca, New York 14850
Email: wcole@cityofithaca.org

Ithaca City Attorney
108 East Green Street
Ithaca, New York 14850
Email: attorney@cityofithaca.org

Notices to the Town are to be addressed to:

Ithaca Town Supervisor
215 N. Tioga Street
Ithaca, New York 14850
Email: RHowe@townithacany.gov

with copies to:

Ithaca Town Finance Officer
215 N. Tioga Street
Ithaca, New York 14850
Email: Finance@townithacany.gov

Ithaca Town Clerk
215 N. Tioga St.
Ithaca, New York 14850
Email: clerks@townithacany.gov

23. Workers Compensation and Disability Insurance. If the City ceases to self-insure for workers' compensation and/or disability coverage, the City shall present to the Town proof that the City provides the levels of workers' compensation and/or disability coverage required by the State of New York.

24. Independent Contractor. The City will be at all times an independent contractor and not an agent for the Town. The City shall be fully responsible for all acts and omissions of its employees, volunteers, subcontractors, and suppliers, and specifically will be responsible for sufficient administration and supervision to ensure compliance in every respect with the Agreement requirements. There will be no contractual relationship between any subcontractor or supplier and the Town by virtue of this Agreement with the City. No provision of the Agreement will be for the benefit of any party other than the Town and City. The City, and not the Town, is the employer of its employees and is responsible for their wages, hours, benefits, worker's compensation, social security, and all other incidents of employment.

25. No Assignment. This Agreement may not be assigned by the parties.

26. Binding Nature of Agreement. This Agreement is binding upon the parties and their respective representatives and successors.

27. Governing Law, Jurisdiction, and Enforcement. This Agreement is made in New York, and shall be construed under the laws of the State of New York without regard to, or the application of, New York State's choice of law provisions. Both parties consent that if any action is brought to enforce this Agreement, it shall be brought in an appropriate Court in Tompkins County, New York, and both parties consent to the jurisdiction of such court.

28. Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes any and all prior written or oral agreements, negotiations or understandings, existing between the parties. This Agreement may be amended only by written instrument signed by each party and only after the Town holds a public hearing pursuant to New York Town Law § 184(8) and after the City follows relevant City and/or state laws and procedures.

29. Survival. All obligations arising prior to the termination of this Agreement and all provisions of this Agreement allocating responsibility or liability between the City and the Town shall survive the completion of services hereunder and the termination of this Agreement.

30. Severability. If any provision of this Agreement is deemed to be invalid or inoperative for any reason, that part may be modified by the parties to the extent necessary to make it valid and operative, or if it cannot be so modified, then it shall be deemed severed, and the remainder of this Agreement shall continue in full force and effect as if this Agreement had been signed with the invalid portion so modified or eliminated.

The parties' duly authorized officers have executed this Agreement as of the day(s) and year shown below.

[SIGNATURES IMMEDIATELY FOLLOW]

CITY OF ITHACA

_____	_____
Dominick Recckio, Acting City Manager	Date

APPROVED AS TO FORM

_____	_____
Robert G. Cantelmo, Mayor	Date

_____	_____
Victor Kessler, City Attorney	Date

_____	_____
Wendy Cole, Acting City Controller	Date

STATE OF NEW YORK)
COUNTY OF TOMPKINS) SS.:

On the _____ day of _____ in the year 2025 before me, the undersigned, personally appeared Dominick Recckio, Acting City Manager, personally known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his capacity, and that by his signature on the instrument, the individual, or the person upon behalf of which the individual acted, executed the instrument.

Notary Public

TOWN OF ITHACA TOWN BOARD

_____ Rod Howe, Town Supervisor	_____ Date
_____ Richard DePaolo, Town Board Member	_____ Date
_____ Pamela Bleiwas, Town Board Member	_____ Date
_____ Susie Gutenberger, Town Board Member	_____ Date
_____ Margaret Johnson, Town Board Member	_____ Date
_____ Eric Levine, Town Board Member	_____ Date
_____ Rob Rosen, Town Board Member	_____ Date

STATE OF NEW YORK)
COUNTY OF TOMPKINS) SS.:

On the _____ day of _____ in the year 2025 before me, the undersigned, personally appeared Rod Howe, Supervisor of the Town of Ithaca, Richard DePaolo, Town Board Member, Pamela Bleiwas, Town Board Member, Susie Gutenberger, Town Board Member, Margaret Johnson, Town Board Member, Eric Levine, Town Board Member, and Rob Rosen, Town Board Member, personally known to me or proved to me on the basis of satisfactory evidence to be the

individuals whose names are subscribed to the within instrument and acknowledged to me that they executed the same in their capacities, and that by their signatures on the instrument, the individuals, or the person upon behalf of which the individuals acted, executed the instrument.

Notary Public



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Acting City Manager and Parking Working Group
DATE: January 7, 2026
RE: Ordinance- 2026 Parking Fee Changes
ITEM #: 6.4

An Ordinance Amending Ithaca City Code Sections 346-77, "Schedule XXVII: Parking Meter Zones" and 346-50, "Civil Penalty for Parking Violations."

ATTACHMENTS:

[Parking Memo.pdf](#)

[Sat Parking and Overtime Meter Ordinance.pdf](#)

MEMORANDUM

Date: 12/30/2025

To: Common Council

From: Acting City Manager, Parking Working Group

RE: 2026 Parking Fee Changes, Local Ordinance

EXECUTIVE SUMMARY

The adopted 2026 City of Ithaca budget includes an increase in projected revenues for on-street and garage parking. On December 18, 2025 a press release was published detailing the impending fee updates (<https://www.cityofithaca.org/CivicAlerts.aspx?AID=1328>)

Hourly and daily maximum metered parking fees (detailed below) are able to be easily changed by staff and vendors – these changes are in process and will begin on January 5.

An ordinance amending City Code is necessary in order to both extend metered on-street parking fees to include Saturdays and change overtime meter fines. This ordinance is on the agenda for Common Council to consider January 7, 2026.

New signage to communicate changes and enhance the parking experience is being implemented.

A new Parking Access Control and Revenue System vendor will be needed to implement sustainable rate and customer experience changes in parking garages.

Hourly Parking Rates

Implementing new hourly parking rates will bring the City of Ithaca more in line with regional and peer communities. Hourly rates have not changed since 2015. Demand for on-street parking in the metered parking zones continues to be strong.

A lower hourly rate in garages will incentivize the use of garage parking and encourage higher turnover of on-street spaces for shorter trips and convenient parking.

- 2026 Metered On-Street Hourly Parking Rate: \$2.50/hr
- 2026 Coin-Only Metered On-Street Hourly Parking Rate: \$1.50/hr (until equipment upgrades are complete)
- 2026 Parking Garage Hourly Parking Rate: \$2.25/hr (Green St., Seneca St. and Cayuga St. garages maximum daily rate will be \$12/day. Dryden Rd. garage maximum daily rate will be \$18/day.)

Metered parking hours are being extended to include Saturdays. This requires amendments to Section 346-77 of the Ithaca City Code as detailed in the ordinance brought forth for your consideration and approval.

The proposed ordinance update also includes changing overtime meter fines. This is necessary to keep pace with the cost of on-street parking, ensuring that fines are priced relative to the parking fee. Additional revenue will be gained by changing the overtime meter fines from \$15 to \$25, though analysis on revenue estimates is in process.¹

To support downtown retail economic activity and moderate increases for key stakeholders such as places of worship with Saturday services, a pilot parking validation system is being considered for implementation. Such a system would provide validation codes that an organization/business could offer to their users/customers for free or reduced parking fees. Once more information is available from the City's parking payment vendor, City staff will work with local partners to implement this pilot program.

Signage

New and improved signage to include notice of metered Saturday parking and encourage the use of the ParkMobile “ways to pay” is in the process of being implemented.

- An analysis of the existing signage that will need to have “Friday” changed to “Saturday” is ongoing.
- ParkMobile (existing City Parking Payment Vendor) provides signage to notify the parking public of contactless “ways to pay” - these signs will be installed throughout the metered parking zones in 2026

Additional signage and public information (including on the City website) encouraging use of City parking garages is also being considered.

Parking Access Control and Revenue System (PARCS)

Gate access and payment equipment in City garages are in need of repair and/or replacement. Existing capital project resources are available for the City to secure a consultant to help develop an RFP and select a PARCS vendor.

¹ Section 346-50 of the Code currently authorizes fines in a range: the fine for an overtime meter is “not less than \$15 and not more than \$50” and the penalty for payment after 20 days is “not more than \$75”. In practice, fines for both overtime meters and payments after 20 days have been assessed at \$15. The proposed ordinance eliminates the ranges and sets fixed fines at appropriate levels given the updated fees in order to promote fairness, consistency, and transparency.

A new PARCS vendor would provide the City with the necessary equipment and operational expertise to enhance the customer experience, seamlessly collect payments, and clarify staffing and enforcement processes.

Policy Alignment Statement

This ordinance implements Common Council's financial priorities by implementing parking fee changes as directed by Council through its approved 2026 budget. Specifically, adding charges for Saturday parking will increase non-tax levy revenue and revising the fine structure as proposed will improve transparency, consistency, and fairness in parking enforcement.

An Ordinance Amending Ithaca City Code Sections 346-77, “Schedule XXVII: Parking Meter Zones” and 346-50, “Civil Penalty for Parking Violations.”

WHEREAS, through its adopted 2026 budget, the Common Council of the City of Ithaca projected an increase to revenues to be realized by extending on-street parking fees to include Saturdays and an increase in the fees for metered parking, and

WHEREAS, Ithaca City Code Section 346-77, “Schedule XXVII: Parking Meter Zones”, governs the days and times during which metered parking is authorized and enforced, and

WHEREAS, Ithaca City Code Section 346-50, “Civil Penalty for Parking Violations”, governs the fines set for expired meters and is inconsistent with the new fee structure, and

WHEREAS, the Common Council of the City of Ithaca desires to amend Sections 346-77 and 346-50 of the Ithaca City Code to effectuate this change; now, therefore

ORDINANCE 2026-__

BE IT ORDAINED AND ENACTED by the Common Council of the City of Ithaca as follows:

Section 1. Legislative findings, intent, and purpose.

The Common Council of the City of Ithaca makes the following findings:

1. Metered parking is necessary to regulate the use of parking spaces within the City of Ithaca, and the collection of fees from users is consistent with the City’s goals of regulating public parking spaces on City property and reasonably offsetting the cost to taxpayers of managing City parking.
2. Extending metered parking hours to include Saturdays is consistent with the aforementioned goals.
3. Updating the civil penalties for overtime meter is necessary to encourage compliance with meter regulations, to disincentivize repeat offenses, and to promote transparency and consistency by establishing fixed fines for offenses.

Section 2. Amendments to Section 346-77 of the Ithaca City Code

The following portions of Section 346-77 of the Ithaca City Code are hereby amended as follows: ¹

§ 346-77. Schedule XXVII: Parking Meter Zones.

- A. On-street parking meter zones. In accordance with the provisions of § 346-37, parking or standing a vehicle in a parking meter space in the on-street parking meter zones described

¹ Strikethrough indicates removals. Underlining indicates additions. Ellipses (...) indicate the omitted text remains unaltered.

below shall be lawful during the hours specified only upon the deposit of such amount as is indicated for each specified period of time:

Name of Street	Side	Time Limit; Hours/Days	Location
Albany Street	East	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	From Green Street to Seneca Street
Aurora Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Court Street to Six Mile Creek bridge
Cayuga Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Cascadilla Street to the south line of 312 through 313 South Cayuga Street
College Avenue	East	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Oak Avenue to Bool Street
College Avenue	West	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Oak Avenue to Cook Street
Court Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Aurora Street to Cayuga Street
Dryden Road	North	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	College Avenue to Elmwood Avenue
Dryden Road	South	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Eddy Street to Linden Avenue

Name of Street	Side	Time Limit; Hours/Days	Location
East Buffalo Street	North	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Aurora Street to Terrace Place
East Buffalo Street	North	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Cayuga Street to Aurora Street
East Buffalo Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Aurora Street to Parker Street
East Court Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Aurora Street to Parker Street
East Green Street			
East Green Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Cayuga Street to a point 175 feet east thereof
East Seneca Street	North	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Cayuga Street to Parker Street
East Seneca Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Cayuga Street to Tioga Street
East Seneca Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	North Tioga Street to North Aurora Street
East Seneca Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	From a point 13 feet east of the west line of Parker Street to Seneca Way

Name of Street	Side	Time Limit; Hours/Days	Location
East State/MLK Jr. Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	From the 300 block to the east line of 317 East State/MLK Jr. Street
Eddy Street	East	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	From a point 80 feet north of Seneca Street to the Campus Arch
Eddy Street	West	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Seneca Street to Williams Street
Geneva Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Seneca Street to Buffalo Street
Geneva Street	East	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Green Street to Seneca Street, except part of the 100 block in front of the Catholic church
Linden Avenue	West	2 hrs.; 9:00 a.m. to 6:00 p.m./Mon. through Fri. <u>Sat.</u>	Dryden Road to a point 500 feet south thereof
North Plain Street	East	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	State/MLK Jr. Street to a point 50 feet south of Seneca Street
North Tioga Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Court Street to Cascadilla Avenue
Oak Avenue	North	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	College Avenue to Elmwood Avenue

Name of Street	Side	Time Limit; Hours/Days	Location
Oak Avenue	South	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	College Avenue to Linden Avenue
Osmun Place	North	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Stewart Avenue to a point 156 feet west thereof
Seneca Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Cayuga Street to Meadow Street
Seneca Way	West	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	State/MLK Jr. Street to Aurora Street
State/MLK Jr. Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Aurora Street to Fulton Street
Stewart Avenue	East	None; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Campus Road to University Avenue
Stewart Avenue	West	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Buffalo Street to Campus Road
Stewart Avenue	West	None; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	University Avenue to Willard Way
Thurston Avenue	North	None; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Highland Avenue to Wyckoff Avenue
Thurston Avenue	South	None; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Barton Place to Wyckoff Avenue

Name of Street	Side	Time Limit; Hours/Days	Location
Tioga Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Cascadilla Avenue to Seneca Street
West Buffalo Street	North	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	100 block
West Court Street	North	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	North Cayuga Street to North Geneva Street
West Green Street			
West Green Street	North	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Cayuga Street to Albany Street
West Green Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Albany Street to 150 feet west of Cayuga Street
West Seneca Street	Both	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Geneva Street to Albany Street
West Seneca Street	North	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Cayuga Street to a point 100 feet east of Geneva Street
West Seneca Street	South	2 hrs.; 9:00 a.m. to 6:00 p.m./ Mon. through Fri. <u>Sat.</u>	Tioga Street to Geneva Street

- B. Off-street parking meter zones. Parking or standing a vehicle in a parking meter space in the off-street parking meter zones described below shall be lawful only when not in excess of the maximum parking time indicated during the hours of operation specified, on all days except ~~Saturdays~~ and Sundays and holidays, and only upon the deposit of such amount as is indicated for each specified period of time:

Name of Lot (Location)	Hours/Days	Time Limit
East State/MLK Jr. Street parking area (north side of 300 block)	9:00 a.m. to 6:00 p.m.	2 hrs.
Parking area at southwest corner of State/MLK Jr. Street and Geneva Street	9:00 a.m. to 6:00 p.m.	2 hrs.

Section 3. Amendments to Section 346-50 of the Ithaca City Code

The following portions of Section 346-50 of the Ithaca City Code are hereby amended as follows:²

§ 346-50 Civil penalty for parking violations.

A. Notwithstanding the provisions of § 346-49 above and in full acquittance of any violation for parking for a longer period of time than is permitted, a civil penalty in the sum of \$25 ~~not less than \$15 and not more than \$50~~ may be paid if such sum is paid within 20 days of such violation.

B. Civil penalty for delinquent violations. In addition to the penalties provided in Subsection A above, additional civil penalties shall be payable upon any violation for parking for a longer period of time than is permitted in accordance with the following schedule:

(1) Penalty to be added after 20 days: \$20 ~~not more than \$75~~.

(2) Upon submission of uncollectible fines to a collection agency or other entity for enforcement, ~~an amount not to exceed~~ 35% of the total delinquent fine and penalties will be added to cover collection fees.

Section 4. Implementation

The City Manager is authorized to begin enforcement for paid Saturday parking as contemplated in this ordinance following communication of these changes to the public and modification of posted signage notifying the public of the change. No further action by Council shall be necessary for the City Manager to implement and enforce the changes contemplated herein.

Section 5. Severability Clause

Severability is intended throughout and within the provisions of this ordinance. If any section, subsection, sentence, clause, phrase, or portion of this ordinance is held to be invalid or unconstitutional by a court of competent jurisdiction, then that decision shall not affect the validity of the remaining portions of this ordinance.

Section 6. Effective Date

This ordinance shall take effect immediately and in accordance with law upon publication of notices as provided in the Ithaca City Charter.

² Strikethrough indicates removals. Underlining indicates additions. Ellipses (...) indicate the omitted text remains unaltered.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: Bond Resolution-Stewart Avenue Bridge - \$5,200,300
ITEM #: 6.5

A RESOLUTION AUTHORIZING THE ISSUANCE OF AN ADDITIONAL \$5,200,300 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY PART OF THE COST OF THE RECONSTRUCTION AND IMPROVEMENTS TO THE STEWART AVENUE BRIDGE, IN AND FOR SAID CITY.

ATTACHMENTS:
[Stewart Ave -1.pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org); clerk@cityofithaca.org

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
Stewart Avenue Bridge –\$5,200,300 Bonds (Construction)
Orrick File: 43119-2-700

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(Stewart Avenue Bridge – Construction)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilman _____, who moved its adoption, seconded by Councilman _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF AN ADDITIONAL \$5,200,300 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY PART OF THE COST OF THE RECONSTRUCTION AND IMPROVEMENTS TO THE STEWART AVENUE BRIDGE, IN AND FOR SAID CITY.

WHEREAS, the capital project hereinafter described, as proposed, has been determined to be a Type II Action pursuant to the regulations of the New York State Department of Environmental Conservation promulgated pursuant to the State Environmental Quality Review Act, which regulations state that Type II Actions will not have a significant adverse effect on the environment; and

WHEREAS, pursuant to a bond resolution dated May 25, 2022 the Common Council approved the planning and design for the Stewart Avenue Bridge improvement over Fall Creek, including incidental expenses in connection therewith in the amount of \$110,00; and

WHEREAS, pursuant to a bond resolution dated January 4, 2023 the Common Council approved the additional planning and design for the Stewart Avenue Bridge improvement over Fall Creek, including incidental expenses in connection therewith in the amount of \$985,00; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying part of the cost of the reconstruction of and improvements to the Stewart Avenue Bridge over Fall Creek, in and for the City of Ithaca, Tompkins County, New York, including incidental improvements and expenses in

connection therewith, there are hereby authorized to be issued an additional \$5,200,330 bonds pursuant to the provisions of the Local Finance Law, which specific object or purpose is hereby authorized at a new maximum estimated cost of \$6,295,330.

Section 2. The plan for the financing of such \$6,295,330 maximum estimated cost is as follows:

- a) By the issuance of the \$110,000 bonds of said City heretofore authorized to be issued therefor pursuant to a bond resolution dated May 25, 2022 (the “Prior Planning Bond Resolution I”);
- b) By the issuance of additional \$985,000 bonds of said City heretofore authorized to be issued therefor pursuant to a bond resolution dated January 4, 2023 (the “Prior Planning Bond Resolution II”; and
- c) By the issuance of the additional \$5,200,330 bonds of said City herein authorized.

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is forty years, pursuant to subdivision 10 of paragraph a of Section 11.00 of the Local Finance Law. Prior Planning Bond Resolution I and Prior Planning Bond Resolution II are hereby amended to increase the period of probable usefulness to that stated herein and the period of probable usefulness shall be calculated from the date of the first obligations issued therefor.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of

said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as he shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, he shall comply fully with the provisions of the Local Finance Law and any order or rule of the State Comptroller applicable to the sale of municipal bonds. The receipt of the City Controller shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of

a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or
- 2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with,

and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

- 3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer
this January _____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF AN ADDITIONAL \$5,200,300 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY PART OF THE COST OF THE RECONSTRUCTION AND IMPROVEMENTS TO THE STEWART AVENUE BRIDGE, IN AND FOR SAID CITY.

Specific object or purpose:	Reconstruction of/construction of improvements to the Stewart Avenue Bridge over Fall Creek
Period of probable usefulness:	40 years
Maximum estimated cost:	\$6,295,330
Previous authorizations for planning:	\$110,000 (5/25/22) and \$985,000 (1/4/23)
Amount of additional obligations to be issued:	\$5,200,300 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: Bond Resolution- Cass Park Bathroom-Pavilion Improvements- \$938,000
ITEM #: 6.6

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$938,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF BATHROOM AND PAVILION IMPROVEMENTS IN CASS PARK, IN AND FOR SAID CITY.

ATTACHMENTS:

[Cass Park Bathroom-2.pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org; clerk@cityofithaca.org)

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
Cass Park Bathroom-Pavilion Improvements - \$938,000 Bonds
Orrick File: 43119-2-718

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(Cass Park Bathroom-Pavillion)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilman _____, who moved its adoption, seconded by Councilman _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$938,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF BATHROOM AND PAVILION IMPROVEMENTS IN CASS PARK, IN AND FOR SAID CITY.

WHEREAS, the capital project hereinafter described, as proposed, has been determined to be a Type II Action pursuant to the regulations of the New York State Department of Environmental Conservation promulgated pursuant to the State Environmental Quality Review Act, which regulations state that Type II Actions will not have a significant adverse effect on the environment; and

WHEREAS, pursuant to a bond resolution dated January 3, 2024 the Common Council approved design and planning costs for the bathroom improvements at the bathroom building at Cass Park near the pavilion and the Children's Garden, including incidental expenses in connection therewith in the amount of \$50,000; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying the cost of the bathroom improvements at the bathroom building at Cass Park near the pavilion and the Pavilion, in and for the City of Ithaca, Tompkins County, New York, including original furnishings, equipment, machinery, apparatus, appurtenances, as well as other incidental improvements and expenses in connection therewith, there are hereby authorized to be issued \$938,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid specific object or purpose is now hereby determined to be \$988,000, which specific object or purpose is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is:

- a) by the issuance of \$50,000 bonds of said City authorized for planning thereof by a bond resolution dated and duly authorized on January 3, 2024 (the “Planning Bond Resolution”); and
- b) by the issuance of the \$938,000 bonds of said City authorized to be issued pursuant to this bond resolution.

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is fifteen years, pursuant to subdivision 19(c) of paragraph (a) of Section 11.00 of the Local Finance Law, and the Planning Bond Resolution is hereby amended to provide the period of probable usefulness is fifteen years, calculated from the first borrowing under the Planning Bond Resolution.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the

bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as he shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, he shall comply fully with the provisions of the Local Finance Law and any order or rule of the State Comptroller applicable to the sale of municipal bonds. The receipt of the City Controller shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for

mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or
- 2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with,

and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

- 3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer this January _____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$938,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF BATHROOM AND PAVILION IMPROVEMENTS IN CASS PARK, IN AND FOR SAID CITY.

Specific object or purpose:	Bathroom and pavilion improvements in Cass Park
Period of probable usefulness:	15 years
Revised maximum estimated cost:	\$988,000
Obligations previously authorized for planning:	\$50,000
Amount of additional obligations to be issued:	\$938,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: Bond Resolution- North Cayuga Street Bridge- \$200,000
ITEM #: 6.7

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$200,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND ENGINEERING EXPENSES FOR NORTH CAYUGA STREET BRIDGE, IN AND FOR SAID CITY.

ATTACHMENTS:
[Cayuga St. Bridge.pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org; clerk@cityofithaca.org)

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
North Cayuga Street Bridge – Design-Engineering Costs - \$200,000 Bonds
Orrick File: 43119-2-756

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof. Originals no longer need be mailed to us.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(N. Cayuga St. Bridge Design-Engineering)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilmember _____, who moved its adoption, seconded by Councilmember _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$200,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND ENGINEERING EXPENSES FOR NORTH CAYUGA STREET BRIDGE, IN AND FOR SAID CITY.

WHEREAS, all conditions precedent to the financing of the capital project hereinafter described, including compliance with the provisions of the State Environmental Quality Review Act, have been performed; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying the cost of preliminary design and engineering expenses for North Cayuga Street Bridge over Fall Creek, in and for the City of Ithaca, Tompkins County, New York, including incidental expenses in connection therewith, there are hereby authorized to be issued \$200,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid specific object or purpose is hereby determined to be \$200,000, which specific object or purpose is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is by the issuance of the \$200,000 bonds of said City authorized to be issued pursuant to this bond resolution. Said specific object or purpose constitutes a separate phase of such costs for the replacement of the North Cayuga Street Bridge over Fall Creek, the prior phase having been

authorized by a bond resolution dated and duly authorized on January 4, 2023 authorizing \$450,000 therefor.

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is five years, pursuant to subdivision 62nd(2nd) of paragraph (a) of Section 11.00 of the Local Finance Law.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as the City Controller shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, the City Controller shall comply fully with the provisions of the Local Finance

Law and any order or rule of the State Comptroller applicable to the sale of municipal bonds. The receipt of the City Controller shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or

2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with,

and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer
this January _____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$200,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND ENGINEERING EXPENSES FOR NORTH CAYUGA STREET BRIDGE, IN AND FOR SAID CITY.

Specific object or purpose:	Preliminary design and engineering expenses for North Cayuga St. Bridge over Fall Creek
Period of probable usefulness:	5 years
Maximum estimated cost:	\$200,000
Amount of obligations to be issued:	\$200,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: Bond Resolution- Red & White Cafe- \$250,000
ITEM #: 6.8

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$250,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF THE RENOVATION OF THE RED & WHITE CAFE IN AND FOR SAID CITY.

ATTACHMENTS:
[Red-White Cafe.pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org; clerk@cityofithaca.org)

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
Red & White Café Renovation - \$250,000 Bonds
Orrick File: 43119-2-755

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting. We understand that this will authorize solely the City's share as the City cannot borrow in anticipation of grants to be received by other entities.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(Red & White Café Renovation)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilman _____, who moved its adoption, seconded by Councilman _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$250,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF THE RENOVATION OF THE RED & WHITE CAFÉ, IN AND FOR SAID CITY.

WHEREAS, the capital project hereinafter described, as proposed, has been determined to be a Type II Action pursuant to the regulations of the New York State Department of Environmental Conservation promulgated pursuant to the State Environmental Quality Review Act, which regulations state that Type II Actions will not have a significant adverse effect on the environment; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying the City's share of the cost of the renovation of the Red & White Café at 402-404 West Court Street for City use as a Greater Ithaca Activities Center facility, in and for the City of Ithaca, Tompkins County, New York, including original furnishings, equipment, machinery, apparatus, appurtenances, as well as other incidental improvements and expenses in connection therewith, there are hereby authorized to be issued \$250,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid specific object or purpose is hereby determined to be \$250,000, which specific object or purpose is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is by

the issuance of the \$250,000 bonds of said City authorized to be issued pursuant to this bond resolution.

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is twenty-five (25) years, pursuant to subdivision 12(a) of paragraph (a) of Section 11.00 of the Local Finance Law.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as he shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, he shall comply fully with the provisions of the Local Finance Law and any order or rule of the

State Comptroller applicable to the sale of municipal bonds. The receipt of the City Controller shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or
- 2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with,

and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

- 3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer this January _____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$250,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF THE RENOVATION OF THE RED & WHITE CAFÉ, IN AND FOR SAID CITY.

Specific object or purpose:	Renovation of the Red & White Café for use as a GIAC facility (City share)
Period of probable usefulness:	25 years
Maximum estimated cost:	\$250,000
Amount of obligations to be issued:	\$250,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: Bond Resolution- Raw Water Main (Reservoir to WTP) - \$1,500,000
ITEM #: 6.9

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$1,500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF THE RAW MAIN WATER REPLACEMENT, IN AND FOR SAID CITY.

ATTACHMENTS:
[Raw Wtr Main.pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org); clerk@cityofithaca.org

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
Replacement of Raw Water Main (Reservoir to WTP) - \$1,500,000 Bonds
Orrick File: 43119-2-754

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(Raw Wtr. Main Replacement. (Reservoir-WTP))

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilman _____, who moved its adoption, seconded by Councilman _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$1,500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF THE RAW MAIN WATER REPLACEMENT, IN AND FOR SAID CITY.

WHEREAS, the capital project hereinafter described, as proposed, has been determined to be a Type II Action pursuant to the regulations of the New York State Department of Environmental Conservation promulgated pursuant to the State Environmental Quality Review Act, which regulations state that Type II Actions will not have a significant adverse effect on the environment; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying the cost of the replacement of a portion of the cast iron raw water main from the reservoir to the Water Treatment Plant, in and for the City of Ithaca, Tompkins County, New York, including incidental improvements and expenses in connection therewith, there are hereby authorized to be issued \$1,500,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid specific object or purpose is hereby determined to be \$1,500,000, which specific object or purpose is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is by the issuance of the \$1,500,000 bonds of said City authorized to be issued pursuant to this bond resolution

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is forty years, pursuant to subdivision 1 of paragraph (a) of Section 11.00 of the Local Finance Law.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as he shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, he shall comply fully with the provisions of the Local Finance Law and any order or rule of the State Comptroller applicable to the sale of municipal bonds. The receipt of the City Controller

shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or
- 2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with,

and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

- 3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer this January ____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$1,500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF THE RAW MAIN WATER REPLACEMENT, IN AND FOR SAID CITY.

Specific object or purpose:	Replacement of a portion of the cast iron raw water main from the reservoir to the Water Treatment Plant
Period of probable usefulness:	40 years
Maximum estimated cost:	\$1,500,000
Amount of obligations to be issued:	\$1,500,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: Bond Resolution- 510 First Street Renovation -(Sewer) - \$600,000
ITEM #: 6.10

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$600,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND BIDDING EXPENSES FOR 510 FIRST STREET BUILDING RENOVATIONS (SEWER PORTION), IN AND FOR SAID CITY.

ATTACHMENTS:

[510 First Street Sewer.pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org; clerk@cityofithaca.org)

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
510 First Street Renovation Planning-Bidding (Sewer) - \$600,000 Bonds
Orrick File: 43119-2-753

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof. Originals no longer need be mailed to us.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(510 First St. Planning-Bidding - Sewer)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilmember _____, who moved its adoption, seconded by Councilmember _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$600,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND BIDDING EXPENSES FOR 510 FIRST STREET BUILDING RENOVATIONS (SEWER PORTION), IN AND FOR SAID CITY.

WHEREAS, all conditions precedent to the financing of the capital project hereinafter described, including compliance with the provisions of the State Environmental Quality Review Act, have been performed; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying the cost of preliminary design and bidding expenses for 510 First Street building renovations (sewer portion), in and for the City of Ithaca, Tompkins County, New York, including incidental expenses in connection therewith, there are hereby authorized to be issued \$600,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid specific object or purpose is hereby determined to be \$600,000, which specific object or purpose is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is by the issuance of the \$600,000 bonds of said City authorized to be issued pursuant to this bond resolution

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is five years, pursuant to subdivision 62nd(2nd) of paragraph (a) of Section 11.00 of the Local Finance Law.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as the City Controller shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, the City Controller shall comply fully with the provisions of the Local Finance Law and any order or rule of the State Comptroller applicable to the sale of municipal bonds.

The receipt of the City Controller shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or

2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer this January _____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$600,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND BIDDING EXPENSES FOR 510 FIRST STREET BUILDING RENOVATIONS (SEWER PORTION), IN AND FOR SAID CITY.

Specific object or purpose:	Preliminary design and bidding expenses for 510 First St. building renovations (sewer portion)
Period of probable usefulness:	5 years
Maximum estimated cost:	\$600,000
Amount of obligations to be issued:	\$600,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: Bond Resolution- 510 First Street Renovation - (Water) - \$400,00
ITEM #: 6.11

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$400,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND BIDDING EXPENSES FOR 510 FIRST STREET BUILDING RENOVATIONS (WATER PORTION), IN AND FOR SAID CITY.

ATTACHMENTS:

[510 First Street Water.pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org; clerk@cityofithaca.org)

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
510 First Street Renovation Planning-Bidding (Water) - \$400,000 Bonds
Orrick File: 43119-2-752

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof. Originals no longer need be mailed to us.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(510 First St. Planning-Bidding - Water)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilmember _____, who moved its adoption, seconded by Councilmember _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$400,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND BIDDING EXPENSES FOR 510 FIRST STREET BUILDING RENOVATIONS (WATER PORTION), IN AND FOR SAID CITY.

WHEREAS, all conditions precedent to the financing of the capital project hereinafter described, including compliance with the provisions of the State Environmental Quality Review Act, have been performed; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying the cost of preliminary design and bidding expenses for 510 First Street building renovations (water portion), in and for the City of Ithaca, Tompkins County, New York, including incidental expenses in connection therewith, there are hereby authorized to be issued \$400,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid specific object or purpose is hereby determined to be \$400,000, which specific object or purpose is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is by the issuance of the \$400,000 bonds of said City authorized to be issued pursuant to this bond resolution

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is five years, pursuant to subdivision 62nd(2nd) of paragraph (a) of Section 11.00 of the Local Finance Law.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as the City Controller shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, the City Controller shall comply fully with the provisions of the Local Finance Law and any order or rule of the State Comptroller applicable to the sale of municipal bonds.

The receipt of the City Controller shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or

2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer this January _____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$400,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF PRELIMINARY DESIGN AND BIDDING EXPENSES FOR 510 FIRST STREET BUILDING RENOVATIONS (WATER PORTION), IN AND FOR SAID CITY.

Specific object or purpose:	Preliminary design and bidding expenses for 510 First St. building renovations (water portion)
Period of probable usefulness:	5 years
Maximum estimated cost:	\$400,000
Amount of obligations to be issued:	\$400,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council

FROM: Wendy Cole, Deputy City Controller

DATE: January 7, 2026

RE: Bond Resolution- Wastewater Treatment Plant Improvements - \$500,000

ITEM #: 6.12

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF THE CITY'S SHARE OF THE COST OF IMPROVEMENTS TO THE WASTEWATER TREATMENT PLANT, IN AND FOR SAID CITY.

ATTACHMENTS:

[WWTP.pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org; clerk@cityofithata.org)

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
Misc. WWTP Improvements - \$500,000 Bonds
Orrick File: 43119-2-751

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(WWTP Improvements)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilman _____, who moved its adoption, seconded by Councilman _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF THE CITY'S SHARE OF THE COST OF IMPROVEMENTS TO THE WASTEWATER TREATMENT PLANT, IN AND FOR SAID CITY.

WHEREAS, the capital project hereinafter described, as proposed, has been determined to be a Type II Action pursuant to the regulations of the New York State Department of Environmental Conservation promulgated pursuant to the State Environmental Quality Review Act, which regulations state that Type II Actions will not have a significant adverse effect on the environment; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying the City's share of the cost of improvements to the Wastewater Treatment Plant, in and for the City of Ithaca, Tompkins County, New York, including original furnishings, equipment, machinery, apparatus, appurtenances, as well as other incidental improvements and expenses in connection therewith, there are hereby authorized to be issued \$500,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid specific object or purpose is hereby determined to be \$500,000, which specific object or purpose is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is by

the issuance of the \$500,000 bonds of said City authorized to be issued pursuant to this bond resolution

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is forty years, pursuant to subdivision 4 of paragraph (a) of Section 11.00 of the Local Finance Law.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as he shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, he shall comply fully with the provisions of the Local Finance Law and any order or rule of the

State Comptroller applicable to the sale of municipal bonds. The receipt of the City Controller shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or
- 2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with,

and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

- 3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer
this January _____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE COST OF THE CITY'S SHARE OF THE COST OF IMPROVEMENTS TO THE WASTEWATER TREATMENT PLANT, IN AND FOR SAID CITY.

Specific object or purpose:	WWTP improvements (City's share)
Period of probable usefulness:	40 years
Maximum estimated cost:	\$500,000
Amount of obligations to be issued:	\$500,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: Bond Resolution- Improvements to 60 Foot Dam (City Share) - \$1,500,000
ITEM #: 6.13

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$1,500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF IMPROVEMENTS TO THE 60 FOOT DAM, IN AND FOR SAID CITY.

ATTACHMENTS:

[Dam \(1\).pdf](#)



Orrick, Herrington & Sutcliffe LLP
51 West 52nd Street
New York, NY 10019-6142
+1 212-506-5000
Orrick.com

December 30, 2025

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org; clerk@cityofithaca.org)

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

Re: City of Ithaca, Tompkins County, New York
Improvements to 60 Foot Dam (City Share) - \$1,500,000 Bonds
Orrick File: 43119-2-750

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 6th meeting.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/zmt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION

(Imp. To 60 Foot Dam)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 6, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilman _____, who moved its adoption, seconded by Councilman _____, to-wit:

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$1,500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF IMPROVEMENTS TO THE 60 FOOT DAM, IN AND FOR SAID CITY.

WHEREAS, the capital project hereinafter described, as proposed, has been determined to be a Type II Action pursuant to the regulations of the New York State Department of Environmental Conservation promulgated pursuant to the State Environmental Quality Review Act, which regulations state that Type II Actions will not have a significant adverse effect on the environment; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the specific object or purpose of paying the City's share of the cost of improvements to the 60 Foot Dam, in and for the City of Ithaca, Tompkins County, New York, including incidental improvements and expenses in connection therewith, there are hereby authorized to be issued \$1,500,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid specific object or purpose is hereby determined to be \$1,500,000, which specific object or purpose is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is by the issuance of the \$1,500,000 bonds of said City authorized to be issued pursuant to this bond resolution

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid specific object or purpose is thirty years, pursuant to subdivision 22 of paragraph (a) of Section 11.00 of the Local Finance Law.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as he shall deem best for the interests of the City; provided, however, that in the exercise of these delegated powers, he shall comply fully with the provisions of the Local Finance Law and any order or rule of the State Comptroller applicable to the sale of municipal bonds. The receipt of the City Controller

shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or
- 2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with,

and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

- 3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 6, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer this January ____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 6, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 6, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 6, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$1,500,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF IMPROVEMENTS TO THE 60 FOOT DAM, IN AND FOR SAID CITY.

Specific object or purpose:	Improvements to the 60 Foot Dam
Period of probable usefulness:	30 years
Maximum estimated cost:	\$1,500,000
Amount of obligations to be issued:	\$1,500,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Controller's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Wendy Cole, Deputy City Controller
DATE: January 7, 2026
RE: ENERGY SUSTAINABILITY IMPROVEMENTS- \$400,000
ITEM #: 6.14

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$400,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF ENERGY SUSTAINABILITY IMPROVEMENTS TO VARIOUS CITY BUILDINGS, IN AND FOR SAID CITY.

ATTACHMENTS:

[City of Ithaca - Energy Sustainability Improvements to City Buildings.pdf](#)



Orrick, Herrington & Sutcliffe LLP
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New York, NY 10019-6142
+1 212-506-5000
Orrick.com

Douglas E. Goodfriend

E dgoodfriend@orrick.com
D +1 212 506 5211
F +1 212 506 5151

January 5, 2026

E-MAIL (wcole@cityofithaca.org; sandrew@cityofithaca.org;
akarasin@cityofithaca.org; clerk@cityofithaca.org)

Ms. Wendy Cole, Acting City Controller
Mr. Scott Andrew, Deputy Controller
Mr. Alan Karasin, City Clerk
City of Ithaca
City Hall, 108 East Green Street
Ithaca, New York 14850

Re: City of Ithaca, Tompkins County, New York
Energy Sustainability Improvements to Various City Buildings - \$400,000 Bonds
Orrick File: 43119-2-757

Dear Wendy, Scott and Alan:

In accordance with your recent request, we have prepared and enclose herewith a draft form of bond resolution relating to the above matter for adoption by the Common Council at its January 7th meeting. We understand that this will authorize solely the City's share as the City cannot borrow for improvements of facilities of other entities.

Please see that this resolution is adopted by the affirmative vote of at least two-thirds of the entire voting strength of the Common Council. After adoption, the summary Legal Notice of Estoppel of the resolution, a form of which is enclosed herewith for your convenience, should be published once in the official newspaper of the City.

When available kindly furnish us, **via pdf only**, with a certified copy of the enclosed resolution, together with an original printer's affidavit of publication of the Legal Notice of Estoppel thereof.

Please do not hesitate to call if you have any questions.

With best wishes,

Very truly yours,

Douglas

Douglas E. Goodfriend

DEG/emt
Enclosures

cc: Mr. Andrew Schreyack (w/encl.) (aschreyack@fiscaladvisors.com)
Ms. Natalie Mousaw (w/encl.) (nmousaw@fiscaladvisors.com)

BOND RESOLUTION
(Energy Sustainability Improvements)

At a regular meeting of the Common Council of the City of Ithaca, Tompkins County, New York, held at the Common Council Chambers, City Hall, in Ithaca, New York, in said City, on January 7, 2026, at _____ o'clock P.M., Prevailing Time.

The meeting was called to order by _____, and upon roll being called, the following were

PRESENT:

ABSENT:

The following resolution was offered by Councilman _____, who moved its adoption, seconded by Councilman _____, to-wit:

BOND RESOLUTION DATED JANUARY 7, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$400,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF ENERGY SUSTAINABILITY IMPROVEMENTS TO VARIOUS CITY BUILDINGS, IN AND FOR SAID CITY.

WHEREAS, the capital project hereinafter described, as proposed, has been determined to be a Type II Action pursuant to the regulations of the New York State Department of Environmental Conservation promulgated pursuant to the State Environmental Quality Review Act, which regulations state that Type II Actions will not have a significant adverse effect on the environment; and

WHEREAS, it is now desired to authorize bonds for the financing thereof, NOW, THEREFORE,

BE IT RESOLVED, by the affirmative vote of **not less than two-thirds of the total voting strength** of the Common Council of the City of Ithaca, Tompkins County, New York, as follows:

Section 1. For the class of objects or purposes of paying the cost of energy sustainability improvements to various City buildings, in and for the City of Ithaca, Tompkins County, New York, including original furnishings, equipment, machinery, apparatus, appurtenances, as well as other incidental improvements and expenses in connection therewith, there are hereby authorized to be issued \$400,000 bonds pursuant to the provisions of the Local Finance Law.

Section 2. It is hereby determined that the maximum estimated of the aforesaid class of objects or purposes is hereby determined to be \$400,000, which class of objects or purposes is hereby authorized at said maximum estimated cost, and the plan for the financing thereof is by

the issuance of the \$400,000 bonds of said City authorized to be issued pursuant to this bond resolution; provided, however, that to the extent that any Federal or State grants-in-aid are received for such class of objects or purposes, the amount of bonds to be issued pursuant to this resolution shall be reduced dollar-for-dollar.

Section 3. It is hereby further determined that the period of probable usefulness of the aforesaid class of objects or purposes is twenty-five (25) years, pursuant to subdivision 12(a) of paragraph (a) of Section 11.00 of the Local Finance Law.

Section 4. The faith and credit of said City of Ithaca, Tompkins County, New York, are hereby irrevocably pledged for the payment of the principal of and interest on such obligations as the same respectively become due and payable. An annual appropriation shall be made in each year sufficient to pay the principal of and interest on such obligations becoming due and payable in such year. There shall annually be levied on all the taxable real property of said City, a tax sufficient to pay the principal of and interest on such obligations as the same become due and payable.

Section 5. Subject to the provisions of the Local Finance Law, the power to authorize the issuance of and to sell bond anticipation notes in anticipation of the issuance and sale of the bonds herein authorized, including renewals of such notes, is hereby delegated to the City Controller, the chief fiscal officer. Such notes shall be of such terms, form and contents, and shall be sold in such manner, as may be prescribed by said City Controller, consistent with the provisions of the Local Finance Law.

Section 6. The powers and duties of advertising such bonds for sale, conducting the sale and awarding the bonds, are hereby delegated to the City Controller, who shall advertise such bonds for sale, conduct the sale, and award the bonds in such manner as he shall deem best

for the interests of the City; provided, however, that in the exercise of these delegated powers, he shall comply fully with the provisions of the Local Finance Law and any order or rule of the State Comptroller applicable to the sale of municipal bonds. The receipt of the City Controller shall be a full acquittance to the purchaser of such bonds, who shall not be obliged to see to the application of the purchase money.

Section 7. All other matters, except as provided herein relating to such bonds, including determining whether to issue such bonds having substantially level or declining debt service and all matters related thereto, prescribing whether manual or facsimile signatures shall appear on said bonds, prescribing the method for the recording of ownership of said bonds, appointing the fiscal agent or agents for said bonds, providing for the printing and delivery of said bonds (and if said bonds are to be executed in the name of the City by the facsimile signature of the City Controller, providing for the manual countersignature of a fiscal agent or of a designated official of the City), the date, denominations, maturities and interest payment dates, place or places of payment, and also including the consolidation with other issues, shall be determined by the City Controller. It is hereby determined that it is to the financial advantage of the City not to impose and collect from registered owners of such serial bonds any charges for mailing, shipping and insuring bonds transferred or exchanged by the fiscal agent, and, accordingly, pursuant to paragraph c of Section 70.00 of the Local Finance Law, no such charges shall be so collected by the fiscal agent. Such bonds shall contain substantially the recital of validity clause provided for in section 52.00 of the Local Finance Law and shall otherwise be in such form and contain such recitals in addition to those required by section 52.00 of the Local Finance Law, as the City Controller shall determine.

Section 8. The validity of such bonds and bond anticipation notes may be contested only if:

- 1) Such obligations are authorized for an object or purpose for which said City is not authorized to expend money, or
- 2) The provisions of law which should be complied with at the date of publication of this resolution are not substantially complied with,

and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of such publication, or

- 3) Such obligations are authorized in violation of the provisions of the Constitution.

Section 9. This resolution shall constitute a statement of official intent for purposes of Treasury Regulations Section 1.150-2. Other than as specified in this resolution, no monies are, or are reasonably expected to be, reserved, allocated on a long-term basis, or otherwise set aside with respect to the permanent funding of the object or purpose described herein.

Section 10. This resolution, which takes effect immediately, shall be published in full or summary form in the *Ithaca Journal*, the official newspaper, together with a notice of the City Clerk in substantially the form provided in Section 81.00 of the Local Finance Law.

The question of the adoption of the foregoing resolution was duly put to a vote on roll call, which resulted as follows:

_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____
_____	VOTING	_____

The resolution was thereupon declared duly adopted.

* * * * *

CERTIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF TOMPKINS)

I, the undersigned Clerk of the City of Ithaca, in the County of Tompkins, New York (the “Issuer”), DO HEREBY CERTIFY:

1. That a meeting of the Issuer was duly called, held and conducted on January 7, 2026.
2. That such meeting was a **special regular** (circle one) meeting.
3. That attached hereto is a proceeding of the Issuer which was duly adopted at such meeting by the Common Council of the Issuer.
4. That such attachment constitutes a true and correct copy of the entirety of such proceeding as so adopted by said Common Council.
5. That all members of the Common Council of the Issuer had due notice of said meeting.
6. That said meeting was open to the general public in accordance with Section 103 of the Public Officers Law, commonly referred to as the “Open Meetings Law”.
7. That notice of said meeting (*the meeting at which the proceeding was adopted*) was caused to be given **PRIOR THERETO** in the following manner:

PUBLICATION (here insert newspaper(s) and date(s) of publication - should be a date or dates falling prior to the date set forth above in item 1)

POSTING (here insert place(s) and date(s) of posting- should be a date or dates falling prior to the date set forth above in item 1)

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the seal of the Issuer this January ____, 2026.

City Clerk

(CORPORATE SEAL)

LEGAL NOTICE OF ESTOPPEL

The bond resolution, summary of which is published herewith, has been adopted on January 7, 2026, and the validity of the obligations authorized by such resolution may be hereafter contested only if such obligations were authorized for an object or purpose for which the City of Ithaca, Tompkins County, New York, is not authorized to expend money, or if the provisions of law which should have been complied with as of the date of publication of this notice were not substantially complied with, and an action, suit or proceeding contesting such validity is commenced within twenty days after the date of publication of this notice, or such obligations were authorized in violation of the provisions of the Constitution.

A complete copy of the resolution summarized herewith is available for public inspection during regular business hours at the Office of the City Clerk for a period of twenty days from the date of publication of this Notice.

Dated: Ithaca, New York,

January 7, 2026.

/s/Alan Karasin

City Clerk

BOND RESOLUTION DATED JANUARY 7, 2026.

A RESOLUTION AUTHORIZING THE ISSUANCE OF \$400,000 BONDS OF THE CITY OF ITHACA, TOMPKINS COUNTY, NEW YORK, TO PAY THE CITY'S SHARE OF THE COST OF ENERGY SUSTAINABILITY IMPROVEMENTS TO VARIOUS CITY BUILDINGS, IN AND FOR SAID CITY.

Class of objects or purposes:	Energy sustainability improvements to various City buildings
Period of probable usefulness:	25 years
Maximum estimated cost:	\$400,000
Amount of obligations to be issued:	\$400,000 bonds
SEQRA status:	Type II Action



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: January 7, 2026
RE: Appointment to the Cable Access Oversight Committee
ITEM #: 8.1

Appointment of Troy Parish to a three-year term on the Cable Access Oversight Committee, effective January 1, with the term ending December 31, 2028.

ATTACHMENTS:

[Troy Parish Appointment to the Cable Access Oversight Committee.pdf](#)

Appointment to the Cable Access Oversight Committee

RESOLVED, That Troy Parish be appointed to a three-year term to the Cable Access Oversight Committee, effective January 1, 2026, with the term ending December 31, 2028.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: January 7, 2026
RE: Appointment to the Board of Zoning Appeals (BZA)
ITEM #: 8.2

Donald (Jason) Houghton is being appointed for a 3 year term to the Board of Zoning Appeals effective January 7th 2026, with a term ending December 31, 2028.

ATTACHMENTS:

[Resolution-Donald Houghton -BZA Appt.pdf](#)

Appointment Board of Zoning Appeals

RESOLVED, That Donald Houghton be appointed to a three-year term to the Board of Zoning Appeals, effective January 1, 2026, with the term ending December 31, 2028.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: January 7, 2026
RE: Appointment to the Ithaca Landmark Preservation Commission
ITEM #: 8.3

- David Kramer is being appointed to the ILPC for a 3 year term ending 12/31/2028
- Janet Smith is being reappointed to the ILPC for a 3 year term ending 12/31/2028

ATTACHMENTS:

[Resol-David Kramer ILPC.pdf](#)
[Resol Janet Smith ILPC.pdf](#)

Appointment to the Ithaca Landmark Preservation Commission

RESOLVED, That David Kramer be appointed to a three-year term to the Ithaca Landmark Preservation Commission, effective January 1, 2026, with the term ending December 31, 2028.

Appointment to the Ithaca Landmark Preservation Commission

RESOLVED, That Janet Smith be reappointed to a three-year term to the Ithaca Landmark Preservation Commission, effective January 1, 2026, with the term ending December 31, 2028.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: January 7, 2026
RE: Appointment to the Community Police Board
ITEM #: 8.4

Rick Rogers is being reappointed on the three (3) year term ending December 31, 2028 effective January 1 2026

ATTACHMENTS:

[Mayors Appointments CPB- Rick Rogers.pdf](#)

Mayor Appointments to the Community Police Board

RESOLVED, That Rick Rogers be reappointed to the Community Police Board for a (3) three -year term ending December 31st, 2028.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: City Clerk
DATE: January 7, 2026
RE: City Clerk's Report
ITEM #: 9.1

- The IURA on behalf of the City is soliciting applications to the HUD Entitlement Program
- Annual Financial Disclosure Forms for Elected Officials
- Annual Tax Warrant

ATTACHMENTS:
[Clerk's Report 2026.pdf](#)



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

OFFICE OF THE CITY CLERK
Department of Public Information & Technology
Alan Karasin, City Clerk
www.cityofithaca.org

Telephone: 607-274-6570
Fax: 607-274-6432

REPORT OF THE CITY CLERK

The IURA on behalf of the City is soliciting funding applications to the HUD Entitlement Program

The 2026 Annual Action Planning process for the City's HUD Entitlement Funds is now open and accepting proposals. \$907,000 is anticipated to be available to meet community needs. Application deadline is February 20, 2026 at NOON. Applications and information are available on the IURA website or by contacting Community Development Planner Anisa Mendizabal at amendizabal@cityofithaca.org.

Annual Financial Disclosure Forms for Elected Officials

The City of Ithaca is currently collecting annual Financial Disclosure Forms for Elected Officials. These will be made available to the public in the City Clerk's Office after February 2nd, 2026. For more information, please refer to NYS General Municipal Law Section 800 and 801.

Annual Tax Warrant

The City of Ithaca annual tax warrant is attached.

City of Ithaca HUD Entitlement Program

2026 Annual Action Plan (AAP) Overview

Key Information

- Request For Funding Proposals Released: January 5, 2026
- Anticipated Funding Available: \$906,000
- Application Deadline: Noon, Friday, February 20, 2026
- Common Council consideration of IURA-recommended 2026 Action Plan: June 2026
- Eligible Activities: Community development projects that benefit low- and moderate-income persons or eliminate slum/blight

Acronym Glossary

AAP – Annual Action Plan. Yearly spending plan for the City’s HUD Entitlement Program. AAPs enact the Consolidated Plan’s (Con Plan) five-year strategy.

PI – Program Income. Income generated from the use of CDBG or HOME funds and matching funds. Examples include proceeds from the sale or long-term lease of real property acquired with HOME, or repayments for loans made with CDBG.

PY – Program Year. Ithaca’s HUD Program Year is August 1–July 31.

R/U – Recaptured/Unallocated. HOME or CDBG funds available for reprogramming. Funds taken back when they are not spent on time or as intended—such as when a property with a HOME affordability period is sold before the affordability period has expired—are “recaptured.” Unexpended funds remaining after a funded activity has been completed are “unallocated” until another decision is made about how to use them. We expect a little or no R/U to be available in the 2026 AAP cycle, because IURA is currently reprogramming R/U funds as part of its CDBG Timeliness Work Out Plan with HUD.

Different from Last Year! The schedule for Ithaca’s 2026 planning cycle will revert to the pre-2022 practice of releasing the Request for Applications (RFA) in January, with a new application deadline of February 20, 2026. Stakeholders have given input that because December is a busy month for area nonprofits, many do not begin the application process in earnest until January. The planning process will still end in June.

The 2026 Annual Action Plan (AAP) will fund activities in the third Program Year of the 2024-2028 Consolidated Plan. The 2026 Action Plan will advance the statutory objectives of the Community Development Block Grant (CDBG) Program and HOME Investment Partnerships Program (HOME) to address the goals identified in the [2024-2028 Consolidated Plan](#).

- | | |
|---|--|
| • Improve & Expand Affordable Housing Options | • Strengthen Neighborhoods |
| • Develop Economic & Employment Opportunities | • Meet Essential Needs for Food, Shelter, & Safety |
| • Remove Barriers to Opportunity | • <i>Affirmatively Further Fair Housing</i> |

Overview of Planning Process Milestones: See “2026 City of Ithaca HUD Entitlement Grant Proposed (Draft) Action Plan Schedule” at www.IthacaURA.org.

- The Request for Proposals will be released on Monday, January 5, 2026, followed by (at least) two Public Engagement/Information Sessions. Application forms and other information will be available on the IURA home page: www.lthacaURA.org.
- NEW! Application Due Date: Friday, **February 20, 2026, at 12 noon.**
- Applicants present their proposals to the public and the IURA in Public Hearing #1, which occurs over two days (**TBC: March 19, 2026 & March 26, 2026**).
- Substantive work for the 2026 Action Plan is to be completed by late April with the IURA Board's recommendation of the Draft AAP, followed by the mandatory 30-day Public Comment Period, and Public Hearing #2 to be held at the **May 13, 2026** meeting of Common Council's Committee of the Whole (COW).
- After completion of the 30-day Public Comment Period and Public Hearing #2, the 2026 Annual Action Plan moves forward to Common Council for anticipated adoption on **June 3, 2026**.

HUD Submission Deadline for 2026 Action Plan: June 15, 2026. (Note: Should HUD be delayed in issuing its FY2026 funding formula allocations, as it was in 2018 and 2019, HUD will grant the City an additional 60 days—or until August 14, 2026—to submit the AAP.)

Considerations:

- CDBG regulations cap funding for Public Services activities at 15% of the jurisdiction's total CDBG award, except in the case of Public Services activities which include job creation/placement sponsored by a Community-Based Development Organization (CBDO).
- IURA administrative costs are capped at 20% of total award for CDBG and 10% of total award for HOME.
- HUD closely monitors CDBG annual spend-down requirements (i.e., annual May 31 Timeliness Test); IURA has implemented a timeliness work-out plan.
- Some projects or funded activities require significantly more administrative support than others.
- If a funded project does not go forward, funding must be reprogrammed or returned to HUD.
- New HUD requirements are anticipated. As of December 5, 2025, guidance for 2025's new requirements had not been issued.

Snapshot of IURA's Historic Funding Levels & Activities (rounded to the nearest thousand)

Color Codes: Green shading indicates increase over previous year's award. Red shading indicates decrease. Blue shading indicates CDBG-CV.

PROGRAM YEAR	CDBG Award	CDBG % Change from Prior Year	HOME Award	HOME % Change from Prior Year	FUNDED ACTIVITIES					
					Housing	Econ. Developmt.	Public Facilities	Public Services	Admin	TOTAL
2010	\$890,000		\$574,000		6	1	3	5	2	17
2011	\$743,000	– 17%	\$509,000	– 11%	6	2	2	5	2	17
2012	\$703,000	– 5%	\$487,000	– 4%	4	7	1	4	2	18
2013	\$716,000	+ 2%	\$465,000	– 4%	7	4	6	5	2	24
2014	\$676,000	– 6%	\$442,000	– 5%	6	4	1	4	2	17
2015	\$672,000	– 0.6%	\$369,000	– 17%	8	2	1	5	2	18
2016	\$661,000	– 2%	\$330,000	– 11%	8	3	3	5	2	21
2017	\$644,000	– 3%	\$276,000	– 16%	7	5	2	5	3	22
2018	\$686,000	+ 6%	\$369,000	+ 34%	9	5	3	4	3	24
2019	\$688,000	– 0.7%	\$306,000	– 17 %	5	5	0	6	2	18
2020	\$683,000	–1%	\$335,000	+ 9%	4	3	3	4	2	16
2020-CV	\$769,000	n/a	n/a	n/a	3	0	2	9	2	16

PROGRAM YEAR	CDBG AWARD	CDBG % Change From Prior Year	HOME Award	HOME % Change From Prior Year	FUNDED ACTIVITIES					
					Housing	Econ. Developmt.	Public Facilities	Public Services	Admin	TOTAL
2021	\$691,000	+ 1%	\$335,000	0%	8	4	3	4	2	21
2022	\$633,000	– 8%	\$317,000	– 5%	7	4	2	6	2	21
2023	\$638,000	+ 1%	\$333,000	+ 5%	7	4	0	4	2	17
2024	\$652,000	+ 2%	\$244,000	– 27%	6 ¹	4 ²	2	7	2	21
2025	\$681,000	+4%	\$246,000	+ 0.8%	5	4	1	7	2	19

Anticipated Funding Levels: Historically, allocations of CDBG and HOME funding have tended to decline incrementally, due in part to the growing number of entitlement communities and shifts in Federal priorities. Since 2017, we have seen more volatility, instead of a steady decline. To arrive at anticipated levels for the upcoming Program Year, staff consider the average and median changes in both programs over the past 14 years and other factors, such as recovery from the global catastrophes and other government spending that might affect HUD Entitlement. We anticipate 2026 funding in both entitlement streams to decrease from 2025's allocations. Calculating an anticipated 2026 HOME award is complicated by the substantial reduction (27%) experienced in 2024. IURA Staff has provided an anticipated 2026 HOME figure (below) that reflects average and median change; footnoted are alternate, more conservative HOME funding scenarios, akin to the magnitude of change experienced last year. IURA Staff project the availability of approximately \$166,000 in CDBG Program Income and \$0 in HOME Program Income. *Recaptured/Unallocated (R/U) CDBG/HOME estimates were not available as of 12/5/2025, but will be incorporated once available.* Finally, please recall another unusual element of the 2024 Action Planning cycle: the availability of a large amount of HOME R/U (\$76,000) due to the change in funds from non-compliant HOME to CDBG for 2023 Project #7, SJCS Sober Living Reintegration Project. Should there be HOME R/U in 2026, it is likely to be much smaller. **Altogether, we expect to allocate a total of approximately \$906,700 in CDBG and HOME funds (including PI & R/U funds) to meet community needs in the Program Year ahead.**³

CDBG: Average 15-year change of – 1.8% (median change of – .07%)⁴

HOME: Average 15-year change of – 4.5% (median change of – 5%)⁵

	2025 AAP Actual Award	2026 AAP Anticipated Award (Rounded)	Anticipated 2026 Change from Prior Year's Award	Anticipated 2026 Award + Program Income + Returned/Unused Funds Available for Projects ⁶
CDBG	\$681,000	\$664,000	– 2.5%	\$664,000 minus 20% admin = \$531,000 + \$166,000 PI = \$697,000
HOME	\$246,000	\$233,000	– 5%	\$233,000 minus 10% admin = \$209,700 + \$0.00 PI = \$209,700
Total	\$927,000	\$897,000	– 3.3%	\$906,700

¹ Includes housing inspections contract of \$2,500.

² Includes Economic Development Loan Fund (indicated as “[#]” on the AAP matrix).

³ See rightmost column in chart for detail; PI & R/U amounts are the totals after subtraction of Admin.

⁴ Does not include special funding stream CDBG-CV.

⁵ Does not include special funding stream HOME-ARP.

⁶ Figures in this column will be updated as information becomes available.

2026 CITY TAX NOTICE

Notice is hereby given that the City Tax Roll for the year 2026, with the Warrant attached, has been delivered to Jessica Wright, City Chamberlain of the City of Ithaca. She will receive 2026 City taxes in her office in City Hall, 108 E. Green Street, Ithaca, NY beginning Thursday, January 1, 2026 between the hours of 9:00 a.m. and 12:30 p.m., and again from 1:30 p.m. to 4:00 p.m., Monday through Friday. Payments may be made without penalty on First Installment Taxes through February 2, 2026 and on Second Installment Taxes through June 30, 2026. On all First Installment Taxes remaining unpaid at the expiration of the period specified above, the City Chamberlain will add and collect a 5% penalty on all such sums collected in February. On all First Installment Taxes remaining unpaid on March 1, 2026 an additional 1% per month shall be added and collected up to and including October.

Jessica Wright,
City Chamberlain

State of New York)
County of Tompkins)
City of Ithaca)

TO: **Jessica Wright**
 City Chamberlain of the City of Ithaca, New York

IN THE NAME OF THE PEOPLE OF THE STATE OF NEW YORK

YOU ARE HEREBY COMMANDED to receive, levy and collect City taxes in the amount of \$34,772,582.80, City 520 Omitted in the amount of \$0, delinquent water and/or sewer and miscellaneous charges in the amount of \$1,569,648.24, the BID Assessment in the amount of \$1,063,019.16, and the sidewalk improvement district assessments in the amount of \$1,150,018.90, making a total levy of \$38,555,269.10 from the persons or properties mentioned, described or named in the Assessment and Tax Roll hereto annexed, constituting the City Tax Roll for the current fiscal year and to return this Warrant and Roll on or before the 30th day of September 2026.

YOU ARE FURTHER COMMANDED to attend at the City Chamberlain's Office within said City of Ithaca, at a place designated by the City Chamberlain in a notice published as prescribed by law, each weekday, Monday through Friday, between the hours of 9:00 a.m. and 12:30 p.m., and again from 1:30 p.m. to 4:00 p.m. City taxes shall be collected by one of the following two options: Option 1, payment of the full year amount by February 2, 2026; or Option 2, pay in two installments; each installment shall be equal to fifty percent of the total tax. Collection of the first installment shall be collected by February 2, 2026, without penalty addition. The second installment shall be collected by June 30, 2026, without penalty addition.

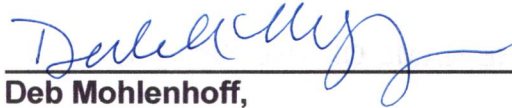
YOU ARE FURTHER COMMANDED, in addition to the sums which you are authorized and directed to receive and collect after the expiration of the period above specified, on all such taxes and assessments remaining unpaid to receive and collect percentages thereon in accordance with the provisions of the City of Ithaca City Charter, and all such additional percentages shall be for the benefit of the City.

YOU ARE FURTHER COMMANDED to deposit all monies so collected in the name of the City of Ithaca in depositories as provided by the City of Ithaca City Charter and designated by the Common Council, and to make returns to the City Controller of all such sums collected and so deposited.

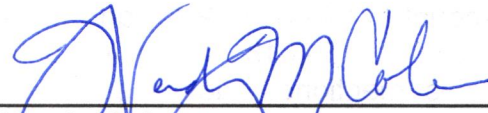
YOU ARE FURTHER COMMANDED, if any person upon whose estate and property a tax is assessed shall neglect or refuse to pay the same, to proceed forthwith under the advice and direction of the City Attorney to collect the same pursuant to the power and authority in you vested and in accordance with the provisions of the City of Ithaca City Charter.



WITNESS THE HAND OF THE CITY MANAGER AND THE CITY CONTROLLER
of said City of Ithaca under the Corporate Seal thereof, this 30th day of December 2025.

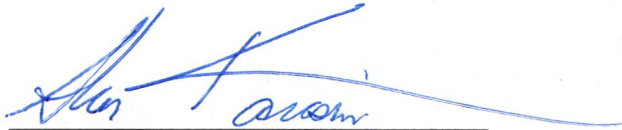


Deb Mohlenhoff,
City Manager
City of Ithaca, New York



Wendy Cole,
Deputy City Controller
City of Ithaca, New York

ATTEST:



Alan Karasin,
City Clerk,
City of Ithaca, New York

RECEIPT:

I, Jessica Wright, City Chamberlain of the City of Ithaca, New York, hereby acknowledge receipt of the Assessment and Tax Roll of said City of Ithaca for the fiscal year 2026 with the warrant thereto attached for the collection of the City taxes and assessments.

Date: Ithaca, New York
December 30, 2025



Jessica Wright
City Chamberlain
City of Ithaca, New York

